

Appellant's notice

(All appeals except small claims track appeals and appeals to the Family Division of the High Court)

Notes for guidance are available which will help you complete this form. Please read them carefully before you complete each section.

For Court use only	
Appeal Court Ref. No.	
Date filed	20 Jun 2024



CA-2024-001342
SEAL Submitted Date:
17-06-2024

Section 1 Details of the claim or case you are appealing against

Claim or Case no.	Case No: BV20D01752	Fee Account no. (if applicable)	
Help with Fees - Ref no. (if applicable)	H W F - - - - -		
Name(s) of the	☐ Claimant(s) ☒ Applicant(s) ☐ Petitioner(s)		
Nadia Zahmoul			
Name(s) of the	☒ Defendant(s) ☐ Respondent(s)		
Karim Nouredine Zahmoul			

Details of the party appealing ('The Appellant')

Name	Nadia Zahmoul
Address (including postcode)	Currently staying with a friend.
Tel No.	0791 332 8615
Fax	
E-mail	Nadia@rosekross.com

Details of the Respondent to the appeal

Name	Karim Nouredine Zahmoul
Address (including postcode)	158 Rua Rodrigues Sampaio, 1 Esq, Lisboa, Portugal, 1150-282
Tel No.	
Fax	
E-mail	

Details of additional parties (if any) are attached ☐ Yes ☐ No

Section 2 Details of the appeal

From which court is the appeal being brought?

- ☐ The County Court at
- ☐ The Family Court at
- ☒ High Court
- ☐ Queen's Bench Division
- ☐ Chancery Division
- ☒ Family Division
- ☐ Other (please specify)

What is the name of the Judge whose decision you want to appeal?

Mr. MacDonald

What is the status of the Judge whose decision you want to appeal?

- ☐ District Judge or Deputy ☐ Circuit Judge or Recorder ☐ Tribunal Judge
- ☐ Master or Deputy ☒ High Court Judge or Deputy ☐ Justice(s) of the Peace

What is the date of the decision you wish to appeal against?

18 April 2024, 24 May 2024 (order)

Is the decision you wish to appeal a previous appeal decision?

☐ Yes ☒ No

Section 3 Legal representation

Are you legally represented?

☐ Yes ☒ No

If Yes, is your legal representative (please tick as appropriate)

- ☐ a solicitor
- ☐ direct access counsel instructed to conduct litigation on your behalf
- ☐ direct access counsel instructed to represent you at hearings only

Name of your legal representative

NA

The address (including postcode) of your legal representative

NA

Tel No.

Fax

E-mail

DX

Ref.

Are you, the Appellant, in receipt of a Civil Legal Aid Certificate?

☐ Yes ☒ No

Is the respondent legally represented?

☒ Yes ☐ No

If 'Yes', please give details of the respondent's legal representative below

Name and address (including postcode) of the respondent's legal representative

Henry Crisp
1st Floor, Fife House
14-18 Fife Road
Kingston upon Thames
Surrey KT1 1SZ

Tel No. 0208 546 7969

Fax

E-mail hcrisp@crispandco.com

DX

Ref.

Section 4 Permission to appeal

Do you need permission to appeal?

☒ Yes ☐ No

Has permission to appeal been granted?

☐ **Yes** (Complete Box A)

☒ **No** (Complete Box B)

Box A

Date of order granting permission

Name of Judge granting permission

Box B

I, Nadia Zahmoul

the Appellant('s legal representative) seek permission to appeal.

If permission to appeal has been granted **in part** by the lower court, do you seek permission to appeal in respect of the grounds refused by the lower court?

☐ Yes ☒ No

Section 5 Other information required for the appeal

Please set out the order (or part of the order) you wish to appeal against

I, Nadia Zahmoul, the appellant in this matter, seek to appeal against the judgement made by The Honourable Mr Justice MacDonald on 18 April 2024 in its entirety.

The Case No is: BV20D01752 and the Neutral Citation Number is: [2024] EWFC 79

Have you lodged this notice with the court in time?
(There are different types of appeal - see Guidance Notes N161A)

☒ Yes ☐ No

If '**No**' you must also complete
Part B of Section 10 and Section 11

Section 6 Grounds of appeal

Please state, in numbered paragraphs, **on a separate sheet** attached to this notice and entitled 'Grounds of Appeal' (also in the top right hand corner add your claim or case number and full name), why you are saying that the Judge who made the order you are appealing was wrong.

☒ I confirm that the grounds of appeal are attached to this notice.

Section 7 Arguments in support of grounds for appeal

- ☐ I confirm that the arguments (known as a ‘Skeleton Argument’) in support of the ‘Grounds of Appeal’ are set out **on a separate sheet** and attached to this notice.

OR (in the case of appeals other than to the Court of Appeal)

- ☒ I confirm that the arguments (known as a ‘Skeleton Argument’) in support of the ‘Grounds of Appeal’ will follow within 14 days of filing this Appellant’s Notice. A skeleton argument should only be filed if appropriate, in accordance with CPR Practice Direction 52B, paragraph 8.3.

Section 8 Aarhus Convention Claim

For applications made under the Town and Country Planning Act 1990 or Planning (Listed Buildings and Conservation Areas) Act 1990

I contend that this claim is an Aarhus Convention Claim ☐ Yes ☒ No

If Yes, and you are appealing to the Court of Appeal, any application for an order to limit the recoverable costs of an appeal, pursuant to CPR 52.19, should be made in section 10.

If Yes, indicate in the following box if you do not wish the costs limits under CPR 45 to apply. If you have indicated that the claim is an Aarhus claim set out the grounds below

Section 9 What are you asking the Appeal Court to do?

I am asking the appeal court to:-
(please tick the appropriate box)

- ☒ set aside the order which I am appealing
- ☐ vary the order which I am appealing and substitute the following order. Set out in the following space the order you are asking for:-

- ☒ order a new trial

Section 10 Other applications

Complete this section **only** if you are making any additional applications.

Part A

- ☒ I apply for a stay of execution. (You must set out in Section 11 your reasons for seeking a stay of execution and evidence in support of your application.)

Part B

- ☒ I apply for an extension of time for filing my appeal notice. (You must set out in Section 11 the reasons for the delay and what steps you have taken since the decision you are appealing.)

Part C

- ☒ I apply for an order that:

I seek the following order:
Enforcement of the order made by Mr Justice MacDonald on 30 June 2023 paragraph 7.1
Maintenance Pending Suit and payment of the arrears. The respondent has failed to make the payments for March, April, and May 2024. MPS payments must now include rent as I have been unable to use the property in Wyoming since 1st February 2024 due to maintenance charges (see attached affidavit). Outstanding MPS payments in arrears of £51,524 (£18,762 per month in April and May, £7,000 per month for rent in February, March).

(You must set out in Section 11 your reasons and your evidence in support of your application.)

In support of my application(s) in Section 10, I wish to rely upon the following reasons and evidence:

Please see the attached witness statement.

I will prepare and submit a skeleton statement within 14 days.

I reserve the right to make changes to the grounds for appeal during the next 14 days.

Vulnerability

Do you believe you, or a witness who will give evidence on your behalf, are vulnerable in any way which the court needs to consider?

- ☒ Yes. Please explain in what way you or the witness are vulnerable and what steps, support or adjustments you wish the court and the judge to consider.

If the respondent is present, I would respectfully request the use of blinds and breaks, if necessary.

- ☐ No

Statement of Truth

This must be completed in support of the evidence in Section 11

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in section 11 are true.

☐ **The applicant believes** that the facts stated in section 11 are true. **I am authorised** by the applicant to sign this statement.

Signature

Nadia Zahmoul

☒ Applicant

☐ Litigation friend (where applicant is a child or a Protected Party)

☐ Applicant's legal representative (as defined by CPR 2.3(1))

Date

Day

14

Month

06

Year

2024

Full name

Nadia zahmoul

Name of applicant's legal representative's firm

NA

If signing on behalf of firm or company give position or office held

NA

Section 13 Supporting documents

To support your appeal you should file with this notice all relevant documents listed below. To show which documents you are filing, please tick the appropriate boxes.

If you do not have a document that you intend to use to support your appeal complete the box over the page.

In the County Court or High Court:

- ☐ three copies of the appellant's notice for the appeal court and three copies of the grounds of appeal;
- ☐ one additional copy of the appellant's notice and grounds of appeal for each of the respondents;
- ☐ one copy of the sealed (stamped by the court) order being appealed;
- ☐ a copy of any order giving or refusing permission to appeal; together with a copy of the judge's reasons for allowing or refusing permission to appeal; and
- ☐ a copy of the Civil Legal Aid Agency Certificate (if legally represented).

In the Court of Appeal:

- ☒ three copies of the appellant's notice and three copies of the grounds of appeal on a separate sheet attached to each appellant's notice;
- ☒ one additional copy of the appellant's notice and one copy of the grounds of appeal for each of the respondents;
- ☒ one copy of the sealed (stamped by the court) order or tribunal determination being appealed;
- ☒ a copy of any order giving or refusing permission to appeal together with a copy of the judge's reasons for allowing or refusing permission to appeal;
- ☐ one copy of any witness statement or affidavit in support of any application included in the appellant's notice;
- ☐ where the decision of the lower court was itself made on appeal, a copy of the first order, the reasons given by the judge who made it and the appellant's notice of appeal against that order;
- ☐ in a claim for judicial review or a statutory appeal a copy of the original decision which was the subject of the application to the lower court;
- ☒ one copy of the skeleton arguments in support of the appeal or application for permission to appeal;
- ☐ a copy of the approved transcript of judgment; and
- ☐ a copy of the Civil Legal Aid Certificate (if applicable)
- ☐ where a claim relates to an Aarhus Convention claim, a schedule of the claimant's financial resources

Reasons why you have not supplied a document and date when you expect it to be available:-

Title of document and reason not supplied	Date when it will be supplied
one copy of any witness statement or affidavit in support of any application included in the appellant's notice;	14 days
one copy of the skeleton arguments in support of the appeal or application for permission to appeal;	14 days

Section 14 The notice of appeal must be signed here

Signed

Nadia Zahmoul

Appellant('s legal representative)

Find out how HM Courts and Tribunals Service uses personal information you give when you fill in a form.

<https://www.gov.uk/government/organisations/hm-courts-and-tribunals-service/about/personal-information-charter>

Grounds of Appeal

I make this Appellant Notice on an urgent basis in the interest of justice, and to uphold my rights under Article 6 and Article 14 of The Convention for the Protection of Human Rights (“the Right for a Fair Trial” and “Protection from Discrimination”).

Grounds	Description	Rule or PD Breached
Ground 1	The judgment fails to consider my mental health disabilities and demonstrates an apparent bias.	
Ground 2	Findings regarding Oxus perjury are baseless, and the reasoning is flawed. Demonstrate presence of bias.	
Ground 3	Court’s failure in its duty to consider making participation directions: victims of domestic abuse (FPR 3A.2A)	3A.2A
Ground 4	Court’s failure in its duty to consider how a party can participate in the proceedings (FPR 3A.4 and 3A.5)	3A.4 and 3A.5
Ground 5	Court’s failure in its duty to assist a protected party participate in proceedings (Part 15 and Part 3A.6)	3A.6
Ground 6	Court’s failure in its duty to consider the factors in 3A.7 to assist me in participating in the proceedings.	3A.7
Ground 7	Court’s failure to consider measures in 3A.8 to assist me in participating in the proceedings.	3A.8
Ground 8	Court’s failure to record reasons for decisions made under Part 3A.	3A.9
Ground 9	Court’s failure to follow the procedures where the court makes directions of its own initiatives as set out in rule 4.3(2) to (6)	4.3 (2) to (6)
Ground 10	Court’s failure to consider Part 15 - representation of protected parties (FPR 15.3)	
Ground 11	Court’s failures under Practice Direction 3AA	
Ground 12	Court’s failure to consider salient autism features and sensory difficulties	Article 6
Ground 13	Procedural irregularities in the final order and cost orders	
Ground 14	MPS order was unlawfully revoked.	
Ground 15	Execution of the order must be stayed because the numbers are wrong and because the process was procedurally unfair.	
Ground 16	Inconsistencies judgment vs. evidence (applicant) and presence of bias	
Ground 17	Inconsistencies judgment vs. evidence (respondent) and presence of bias	
Ground 18	Judge’s finding that Coinbase is a “late disclosure”, not a “non-disclosure” is defective, and his reasoning is irrelevant to the matter.	

Overriding ground of appeal

The overriding failure of the judgment is that the judge has systematically and exhaustively suppressed all mentions of my mental health disabilities, including my trauma and autism symptoms, how they impacted my evidence and his findings.

There is a wholesale failure of the court's duty under Part 3A and PD 3AA to consider my mental health disabilities and to ensure participation measures are in place at all times throughout the proceedings. The judgment is biased.

Rewriting the history books

The judge did not make a single mention of my disabilities throughout the entire judgment comprising 111 paragraphs. There are no mentions of my PTSD and autism disorders and symptoms. There are no recordings of my disabilities and their impact on my functioning. There are no records of the participation measures made by the judge at the hearing to assist me in giving my best possible witness evidence and no qualitative assessment of my evidence. There is no record why the judge revoked the participation measures from 28 February to 24 May. There is no discussion in the entire judgment of the difficulties associated with my mental health disorders. There is no consideration of my autism and my sensory difficulties.

My mental health disabilities, my autism traits, my trauma symptoms, and my vulnerabilities have been comprehensively and systematically suppressed, deleted from the history books, leaving my presentation, my behaviour, and my unusual motor movements visible at the final hearing to be attributable to bad character, moral turpitude, and lack of credibility.

Conclusion

Nothing exists if it is not recorded. Entire chapters of humanity's history have been deleted from collective memory and they simply do not exist. This judgment is an edited and curated version of my existence.

Mental health syndromes and disorders such as autism and trauma are pervasive, and ubiquitous. They permeate everything and are inseparable from the whole.

No judgment is possible without consideration for my mental health conditions because they are omnipresent.

A judgment of 111 paragraphs which determines the rest of my children's lives and mine, but which fails to consider my mental health disabilities cannot be fair and impartial.

My welfare cannot be optimized if my disabilities are redacted.

A trial outcome which suppresses and censors my disabilities and makes no mention of them is not a fair outcome.

Zero mention of my disabilities in a judgment composed of 19,620 words which is theoretically connected to findings made during the trial is not statistically random. **It is statistically a bias.**

The court cannot make an accurate assessment of my character, presentation, credibility, and integrity if it does not take account of my autism and trauma disabilities which pervade everything in my life and which have a significant bearing on my post separation needs.

In conclusion, the analysis of the evidence is manifestly insufficient, with crucial aspects of it suppressed, and the judge's explanation for his findings perfunctory. The outcome of the proceedings is unfair and biased. The respondent is employed by Mr. Kenes Rakishev, and as a result of my witness evidence in these proceedings the children and I have been exposed to tangible threats to our safety, which I have referred to the judge and to the Metropolitan Police. One of the most astonishing and audacious "suppressions" the judgment makes is the stifling of the respondent's perjuries and fraud in connection with his business association with Rakishev. The judgment makes findings which are baseless, unsupported by the evidence, and which don't add up to a reasoned explanation. Instead, the judgment reads exactly as it was written: an attempt to deflect and a blindfolded strike in multiple directions in the hope it sticks somewhere.

I appeal against the order made on 24 May 2024 and the judgment made on 18 April 2024.

I make three urgent applications to the Supreme Court:

- (i) An application for an urgent stay of execution pending the Supreme Court's decision,
- (ii) An application to strike out para. 34 and enforce the maintenance pending suit order made on 5 July 2023 with immediate effect and payment of the outstanding MPS in arrears of £89,048 (£18,762 per month in April, May, June, and July, and £7,000 per month for rent in February, March), and payments to continue monthly pending the Appeal's Court decision.
- (iii) An application is for an extension of time in order to put in place my statutory support, secure housing, seek inpatient treatment for my PTSD and autism burnout.

Mental health disabilities - background

The court has substantial knowledge and evidence of the long-term history of domestic abuse and of my mental health disabilities. Proceedings commenced in 2020, and domestic abuse and mental health disorders have consistently been at the core of my case. My PTSD and autism are extensively mentioned throughout the four-year proceedings, and my presentation is characteristic of trauma and autism disorders. My symptoms and my capacity to function and litigate fluctuate as is common with mental health disabilities. My symptoms worsened significantly during the course of the proceedings due to the prolonged exposure to trauma and to financial abuse. As a result, my daily social and occupational functioning became impaired. I experienced "autism burnout" and lost my ability to function around January/February 2024.

The final hearing started on Tuesday 20th February 2024, and the severity of my mental health difficulties was evident. My solicitor thought we could not proceed with the hearing and wanted to get medical assistance. My presentation was characterized by the visible presence of observable symptoms of trauma and autism, distress, emotional dysregulation, and sensory overwhelm.

The judge ordered participation directions to ensure I could give my best possible witness evidence. These are discussed in ground 15 below.

I started taking psychiatric medication to manage my mental health difficulties since 2011. In February 2024, ahead of the final hearing, my symptoms worsened significantly. My GP prescribed a new anxiety medication, and four other medications to manage my other symptoms: sleep difficulties, increased heart rate, gastrointestinal problems, inflammation, and migraines. My solicitor Zoe Bloom had knowledge of the recent changes to my prescription medication. She saw me take my medication regularly during the course of the final hearing and she had sight of the contents inside my medication bag. She helped me get through several autism meltdowns during the hearing with grounding and containment techniques. I am still taking but it is ineffective, and my symptoms have become unmanageable. Prof. G. Libby has recommended that I attend an inpatient treatment centre for mental health disorders at the earliest opportunity.

Mental health disabilities: background

The Equality Act 2010 identifies nine protected characteristics, or specific aspects of our humanity, which are intrinsic to an individual's dignity and autonomy: part of our equal worth as human beings.

A person has a disability if he or she has (1) a physical or mental impairment which (2) has a substantial and (3) long-term adverse effect on (4) his or her ability to carry out normal day-to-day activities, which is to be considered in interaction with the various barriers which may hinder their full and effective participation in society on an equal basis with others. The definition will include those with such an impairment for 12 months or more unlike, for example a short-term illness or a condition where the effects are minor or trivial. The definition is important since a person must establish that he or she is a disabled person to access protection under the disability strand of the Act.

There are detailed provisions in Schedule 1 to the Act as well as statutory guidance on matters to be taken into account in establishing whether a person is disabled within the meaning of the Act. The United Nations Convention on the Rights of Persons with Disabilities is directly applicable in the UK and provides that "persons with disabilities include those who have long-term physical, mental, intellectual or sensory impairments which in interaction with various barriers may hinder

their full and effective participation in society on an equal basis with others”. The cause of the impairment is irrelevant and may even be unidentified, as long as the evidence demonstrates that the impairment exists. Past disabilities are also covered.

Someone with autism falls within the definition of a vulnerable witness within the meaning of the **Mental Health Act 1983** (defined in section 1 as ‘any disorder or disability of the mind’). This covers the full range of autism spectrum disorders, including those occurring alongside a learning disability or any other kind of disorder (section 34.18 of the Mental Health Act 1983 Code of Practice, Department of Health 2008).

My disabilities: complex trauma and autism spectrum disorder.

I suffer from a complex combination of neurological disorders which restrict and impair my daily functioning and impede my ability to participate efficiently in the proceedings and have a fair trial. My disabilities are protected characteristics under the Equality Act 2010.

1. Autism Spectrum Disorder (High Functioning).

The DSM-5 Manual defines autism spectrum disorder as “persistent difficulties with social communication and social interaction” and “restricted and repetitive patterns of behaviours, activities or interests” (this includes sensory behaviour), present since early childhood, to the extent that these “limit and impair everyday functioning”. My difficulties are primarily with the second category of symptoms.

- a) **Restricted, repetitive patterns of behavior, interests, or activities**, as manifested by at least two of the following, currently or by history:
 - i. Stereotyped or repetitive motor movements, use of objects, or speech (e.g., simple motor stereotypies, lining up toys or flipping objects, echolalia, idiosyncratic phrases).
 - ii. Insistence on sameness, inflexible adherence to routines, or ritualized patterns or verbal nonverbal behavior (e.g., extreme distress at small changes, difficulties with transitions, rigid thinking patterns, greeting rituals, need to take same route or eat food every day).

- iii. Highly restricted, fixated interests that are abnormal in intensity or focus (e.g, strong attachment to or preoccupation with unusual objects, excessively circumscribed or perseverative interest).
 - iv. Hyper- or hypo-reactivity to sensory input or unusual interests in sensory aspects of the environment (e.g., apparent indifference to pain/temperature, adverse response to specific sounds or textures, excessive smelling or touching of objects, visual fascination with lights or movement).
- b) Symptoms must be present in the early developmental period (but may not become fully manifest until social demands exceed limited capacities or may be masked by learned strategies in later life).
- c) Symptoms cause **clinically significant impairment in social, occupational, or other important areas of current functioning.**
- d) These disturbances are not better explained by intellectual disability (intellectual developmental disorder) or global developmental delay. Intellectual disability and autism spectrum disorder frequently co-occur; to make comorbid diagnoses of autism spectrum disorder and intellectual disability, social communication should be below that expected for general developmental level.

I have difficulty with social communication and interaction, including inflexible/rigid thinking. I can be blunt and honest to the point whereby it may be viewed as rudeness, particularly by someone who is unaware of my condition.

I have a strong preference for routines and repetition: novel and new places, as well as changing and unpredictable events, are very stressful.

I have narrow, repetitive 'obsessional' interests in highly specific topics. I can focus on specific areas and return to them repeatedly. I become very articulate and knowledgeable about them. I am able to mask my symptoms with well-developed coping strategies.

2. Post Traumatic Stress Disorder (Diagnosed in March 2013)

The DSM-5 Manual definition of PTSD is in exhibit x. The symptoms which affect me the most are listed below:

a) Presence of one (or more) of the following intrusion symptoms associated with the traumatic event(s), beginning after the traumatic event(s) occurred:

- i. Recurrent, involuntary, and intrusive distressing memories of the traumatic event(s).
- ii. Recurrent distressing dreams in which the content and/or affect of the dream are related to the traumatic event(s).
- iii. Dissociative reactions (e.g., flashbacks) in which the individual feels or acts as if the traumatic event(s) were recurring. (Such reactions may occur on a continuum, with the most extreme expression being a complete loss of awareness of present surroundings.)
- iv. Intense or prolonged **psychological distress** at exposure to internal or external cues that symbolize or resemble an aspect of the traumatic event(s).
- v. Marked **physiological reactions** to internal or external cues that symbolize or resemble an aspect of the traumatic event(s).

b) Persistent avoidance of stimuli associated with the traumatic event(s), beginning after the traumatic event(s) occurred, as evidenced by one or both of the following:

- i. Avoidance of or efforts to avoid distressing memories, thoughts, or feelings about or closely associated with the traumatic event(s).
- ii. Avoidance of or efforts to avoid external reminders (people, places, conversations, activities, objects, situations) that arouse distressing memories, thoughts, or feelings about or closely associated with the traumatic event(s).

c) Negative alterations in cognitions and mood associated with the traumatic event(s), beginning or worsening after the traumatic event(s) occurred, as evidenced by two (or more) of the following:

- i. **Inability to remember** an important aspect of the traumatic event(s) (typically due to dissociative amnesia, and not to other factors such as head injury, alcohol, or drugs).

- ii. Persistent and exaggerated **negative beliefs** or expectations about oneself, others, or the world (e.g., “I am bad,” “No one can be trusted,” “The world is completely dangerous,” “My whole nervous system is permanently ruined”).
 - iii. Persistent, **distorted cognitions about the cause or consequences of the traumatic event(s)** that lead the individual to blame himself/herself or others.
- d) **Marked alterations in arousal and reactivity associated with the traumatic event(s)**, beginning or worsening after the traumatic event(s) occurred, as evidenced by two (or more) of the following:
- i. Irritable behavior and angry outbursts (with little or no provocation), typically expressed as verbal or physical aggression toward people or objects.
 - ii. Reckless or self-destructive behavior.
 - iii. **Hypervigilance.**
 - iv. **Exaggerated startle response.**
 - v. **Problems with concentration.**
 - vi. **Sleep disturbance** (e.g., difficulty falling or staying asleep or restless sleep).
- e) **Duration of the disturbance** (criteria a, b, c and d) is more than 1 month.
- f) **The disturbance causes clinically significant distress** or impairment in social, occupational, or other **important areas of functioning**.

3. Complex PTSD linked to domestic abuse.

Domestic abuse is the principal reason for my decision to initiate divorce proceedings in 2020. The court has extensive information on the history of domestic abuse, coercive control, and trauma I was subjected to throughout nearly three decades of marriage and the long-term negative effects it had on my health. In March 2013, I was diagnosed with complex post-traumatic stress disorder and underwent a five-week inpatient treatment in Arizona, US.

“Coercive behaviour” means an act or a pattern of acts of assault, threats, humiliation and intimidation or other abuse that is used to harm, punish, or frighten the victim.

“Controlling behaviour” means an act or pattern of acts designed to make a person subordinate and/or dependent by isolating them from sources of support, exploiting their resources and

capacities for personal gain, depriving them of the means needed for independence, resistance and escape and regulating their everyday behaviour.

Post-traumatic stress disorder is an anxiety disorder that develops after exposure to a terrifying ordeal that causes great physical and emotional harm and overwhelms the brain's inbuilt chemical and physiological defenses to stress. It can be caused by a single traumatic event. For example, I was involved in the 9/11 terrorist attacks on the WTC and experienced the events from ground zero. I still struggle with intrusive images and emotional disturbances associated with 9/11. In contrast to a single traumatic event, prolonged, repeated trauma can occur only where the victim is in a state of captivity, under the control of the perpetrator. It is an event which causes extreme stress, fear, or horror during which a person feels powerless to change or stop the situation from occurring. Complex trauma is experienced as a threat to one's integrity. I have often described my symptoms of trauma as a feeling of violence and rape. My clinical diagnosis and psychiatric assessments established a strong connection between my trauma symptoms and the prolonged, repeated domestic abuse in the marriage. The psychological impact of subordination to coercive control has many common features, whether it occurs within the public sphere of politics or within the private sphere of domestic relations. This is the trauma which interferes with my daily functioning. It is much more debilitating than the trauma of 9/11.

4. Co-morbidity between PTSD and autism

Research conducted separately in the areas of trauma and autism strongly suggests several potential pathways connecting both disorders.

- a) First, autism spectrum disorder may serve as a vulnerability marker for posttraumatic stress disorder, specifically by increasing the risk for exposure to traumatic events.
- b) Second, PTSD, once it has appeared, may exacerbate certain ASD symptoms, for example, through maladaptive coping strategies and reduced help-seeking.
- c) Third, there may be shared underlying mechanisms for PTSD and ASD, including **neurological abnormalities** associated with both disorders, as well as cognitive and behavioral mechanisms, in addition, the unique characteristics of ASD may determine which events are experienced as particularly traumatic (e.g., social insults and

degradation, **sensory overstimulation**, abrupt changes in known routines) and affect both the manifestation and severity of posttraumatic sequelae among diagnosed individuals.

Disabilities cause impairment in my social and occupational functioning.

During nearly three decades of marriage, I was exposed to constant domestic abuse, pathological lying, gaslighting, circular conversations, oppression, and cognitive dissonance through strategic, structured manipulation. I lived in a near-constant state of hyper-arousal due to the anxiety from the cognitive dissonance. The exposure to long-term trauma changed the structure and functioning of my brain and its neurochemistry. When I went into treatment in 2013, I was experiencing mood disturbances and feelings of mental, emotional, and spiritual disconnection due to low self-worth.

I had difficulties in most functional areas of complex PTSD:

- a) **Behavioral** difficulties (e.g. impulsivity, aggressiveness, sexual acting out, alcohol/drug misuse and self-destructive behavior)
- b) **Emotional** difficulties (e.g. affect lability, rage, depression and panic)
- c) **Cognitive** difficulties (e.g. dissociation and pathological changes in personal identity)
- d) **Interpersonal** difficulties (e.g. chaotic personal relationships)
- e) **Somatization** (resulting in many visits to medical practitioners)

I have undertaken the following treatment for my trauma symptoms:

- a) Cognitive behavioral therapy (CBT), and
- a) Eye Movement Desensitization and Reprocessing (EMDR) to help reprogram brain circuitry so that traumatic events can be recalled with less emotional resonance.

Substantial evidence concerning my disabilities and mental health vulnerabilities was submitted by both parties to the court since proceedings started in 2020. This includes medical reports, psychiatric assessments, sworn statements by both parties, counsel submissions, transcripts of oral evidence provided by the respondent, solicitor open correspondence, and my section 25 sworn statement.

Since the onset of the proceedings in January 2020 I have been exposed to unsustainable levels of stress and trauma. My central nervous system and my capacity for self-regulation have been severely undermined. I am struggling with sleep disturbances, panic, anxiety, cognitive problems, and somatic symptoms including headaches, inflammation, gastrointestinal disorders, and low energy.

My presentation at the final hearing was characterized by significant trauma symptoms, visible distress, emotional dysregulation, sensory overwhelm, and functional impairments.

My PTSD symptoms have resulted in severe impairments in my social and occupational functioning and failure to cope.

Disabilities are a barrier to a fair trial

The court's failure to make reasonable adjustments throughout the proceedings and after the final hearing prevented me from effectively participating in the proceedings, from being heard, and from achieving a fair outcome.

Without reasonable participation adjustments throughout the entire proceedings, not just during testimony, the court has failed in its duty to achieve fairness. My disabilities are a substantial impediment to achieving a fair outcome. The participation adjustments are a necessity, they are not optional. Without them, is impossible to overcome the unfair disadvantage and I do not have the same opportunities to achieve a fair outcome.

Ground 1: The judgment fails to consider my mental health disabilities and demonstrates an apparent bias.

According to the National Autistic Society in the U.K., an autistic meltdown is an intense response to overwhelming sensory or emotional stimuli. When this happens, the autistic adult temporarily loses all control of their behavior. Reactions include crying, yelling, lashing out, suicidal ideation, self-harm, inability to talk, lack of ability to think, or rage. These are an involuntary, visceral response and are experienced like a loss of control by the person having one.

The Autism Research Institute reports that meltdown is caused by **central nervous system overload** in autistic people. Recent research shows that autistic people have neurons that are

more hyperconnected than neurotypicals. This explains why it is so much easier to overwhelm autistic people. Autistic people's sensory systems are very different and when things are overwhelming, this can result in complete meltdown.

According to the National Autistic Society in the U.K., autistic adults describe feeling out of control this with their entire body. They describe having blurry vision, muscles getting hot, cheeks getting warm, and shoulders bunched up. They have a diminished ability to think and sometimes difficulty finding words or remembering basic things. Autistic adults describe feeling completely out of control like everything is fuzzy.

Research also describes a stage called burnout, which can proceed meltdown in which the autistic person begins to feel fatigued, overwhelmed, slowed down, and has difficulty with cognition. This is a period where continued pressure and overwhelming sensory and emotional stress begin to erode the autistic person's ability to function and perform daily tasks. Encouraging autistic people to decrease emotional and sensory pressure at this point can prevent meltdowns.

Difficulties with sensory processing can trigger nervous system overload. Sensory inputs are the first way we interact with and understand the world around us. Our sensory systems (e.g., touch, smell, sound, sight) automatically process and translate input into meaningful information; however, individuals with impaired nervous systems experience and use sensory inputs differently. The brain perceives highly dysregulated sensory inputs as a literal threat to survival which initiates the fight, flight, freeze response.

Failure to consider autism and trauma in the judgment.

Paragraph 64 in the judgment states:

"The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife very firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied, has become obsessed with

demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court”.

The transcript notes of my witness evidence are at the end of this document.

Paragraph 64 is not consistent with the transcripts and is not supported by the evidence.

I am inviting you to read the transcripts and make your own findings.

The judgment makes no mention of my mental health disabilities, and of my autism and trauma symptoms.

Instead, it asserts that my presentation, which is characterized as borderline deranged and unhinged, is entirely due to my obsession with demonstrating that the respondent has vast hidden assets.

The judgment made findings on my character which are not supported by the evidence in the transcripts.

The judgment made on 18 April 2024 has systematically and deliberately suppressed all mentions of my mental health disabilities, including my trauma and autism symptoms. It replaced them with findings on my character, which are baseless, discriminatory, and biased.

Ground 2: Findings regarding Oxus perjury are baseless, and the reasoning is flawed. Demonstrate presence of bias.

The respondent is employed by Mr. Kenes Rakishev, a Kazakh oligarch and the ex-CEO of BTA Bank. Rakishev is well-known to the UK courts.

On 8 February 2024, 10 days before the start of the UK final hearing, the respondent and Rakishev finalized the closing transaction of the Oxus SPAC business combination and attended the launch ceremony at the Nasdaq exchange in Times Square, New York. The launch of the new company on Nasdaq on 8 February 2024 triggered the recognition of the respondent's founder's shares. The market value of the shares was \$500,000 at the launch. This is a liquid marketable securities available for sale and with no restrictions. The founders shares are not an asset, as per GAAP accounting, they are performance-based income.

Timeline of the respondent's perjury

- **8th February 2024:** Rakishev and the respondent executed the Securities and Exchange Commission (SEC) documents approving the transaction (available via the Edgar website [here](#)).

[Rakishev posted a photo](#) of himself and the respondent in his Instagram account at the launch of the company on Nasdaq, New York.

- **19th February 2024:** The Final Hearing commenced at the Royal Courts of Justice, High Court. The respondent committed perjury in the [sworn asset schedule](#) he submitted to the court on the first day of the Final Hearing. He attributed a value of \$0 to the shares of Oxus even though he knew they had a market value of \$500,000.

The respondent lied under oath, committed perjury, and directed his counsel to falsely state that the Oxus shares were worth \$0. On the date he swore his asset statement and when he gave his oral evidence to the court, the respondent knew the shares to be worth \$500,000 and he knowingly lied to the court and committed perjury and fraud. He knowingly lied under oath to make a financial gain for himself, and he knowingly caused me to have a financial loss.

- **26th February 2024:** Ms. Campbell KC, the respondent's counsel, affirmed in closing submissions: ***"Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value."***

- **28th February 2024:** Immediately after the trial's conclusion, I checked the Securities and Exchange Commission's (SEC) website and realized that on 19 February 2024, the date the respondent swore his statement of assets, the shares were in fact worth \$500,000, not \$0. My counsel, Brent Molyneux KC, affirmed that this was a **Material Information** which Mr. Zahmoul knowingly did not disclose, and that it amounted to perjury. Mr. Brent Molyneux KC stated that this was material to the case and that it must be shared with the judge. At no point during the final hearing did any of the parties or their counsels provide evidence about the matrimonial nature of Oxus. Furthermore, the judgment identifies Oxus as an asset, which is

utterly incorrect. The shares are a performance-based income which were granted on the date the respondent was appointed to the board of directors and were recognized upon closing of the business combination. The trigger date of the shares' value was 8 February 2024, the date of the public listing on Nasdaq following the business combination. Henceforth, the value of the shares is the public market value.

My solicitor sent three emails to the respondent's solicitors requesting an explanation, but they failed to reply. At that stage, Mr. Molyneux KC advised me to write to the judge, which I did.

- **6th and 7th March 2024:** I emailed Mr. MacDonald and shared the [information and evidence](#) of the respondent's perjuries, both in oral evidence, as well as in the sworn statement of assets dated 19th February 2024 which he submitted to the court for the final hearing.
- **9th April 2024:** I emailed Mr. MacDonald in confidentiality stating that my 16-year-old daughter Lila Mae and I had been followed by Rakishev's people on 24th March 2024, from Kensington High St tube station to the flat where we were staying. My email can be found [here](#). I provided background information on Kenes Rakishev explaining why this was a significant threat to our safety, including his close relationship with **Ramzan Kadyrov**, his relationship with **Pavel Krotov**, his involvement with **Hunter Biden**, his support to **Putin**, his role in supplying Arlan mine-resistant armored platform military vehicles to Kadyrov, his assassination plot to kill Felix Sater, and more.
- **29th April 2024:** Mr. MacDonald and Sir Jonathan Cohen, Head of Family Appeals, made a judgment on 29th April 2024. The reasoning is wrong. The judgment can be found [here](#). In paragraphs 8, 9 and 10 of the judgment dated 29 April 2024, Justice MacDonald and Sir Jonathan Cohen stated that I did not apply to re-open the evidence, that I alleged the "merger" of Oxus on 8 February 2024 was further evidence of non-disclosure by the husband, and that the court had recorded in its final judgment at paragraph 76 that "**the**

wife did not appear to dispute that the Oxus venture was non-matrimonial in nature". The judges went on to state: ***"In the circumstances, the court was entitled to disregard the further material submitted by the wife concerning non-matrimonial assets which, in any event, was not provided to the court in accordance with the provisions of the FPR 2010, were not exhibited to a statement of evidence and where no application was made to re-open the evidence following the conclusion of evidence and submissions."*** This is unreservedly and wholly wrong.

Firstly, as can be independently verified from the evidence given at the final hearing and included in this document, the nature of the ownership of Oxus shares was not discussed and was not put to me. As such, the assertion that I did not "dispute it" is utterly baseless. Secondly, as explained above, the Oxus founders shares are not an asset, they are a performance-based income. Therefore, whether they are matrimonial or not matrimonial is completely irrelevant to the matter at hand. Thirdly, the respondent committed perjury. In other words, he knowingly made a false statement to the court. That in itself should be the fundamental finding made by the judge. Instead, everything in the judgment serves to deflect from the serious crime of perjury and attempts to "stick it" somewhere, anywhere, except on the respondent.

During the trial, the shares had a value of \$500,000, and the respondent knew they had a value of \$500,000 as the Instagram picture of him and Rakishev attests. He lied to the court, committed perjury, and fraud when he falsely represented that the value of the Oxus shares was \$0.

The judge is wrong in stating that I introduced new evidence. I realized immediately after the final hearing ended that the respondent had committed perjury, and I followed my counsel's advice and sent his solicitors three emails requesting an explanation. They failed to reply, and I emailed the judge on 6th and 7th March, 2024 to inform him that the respondent had committed perjury. This was information, not new evidence. The information was lagging because the respondent committed perjury. It is wrong to "punish" me, the victim of the fraud, for the dishonesty of the respondent. Proceedings for contempt

of court could be brought against him. It is utterly wrong to turn this into a negative for me and to “cleanse” the respondent’s reputation and character in such systematic manner.

Ground 3: Court’s failure in its duty to consider making participation directions: victims of domestic abuse (FPR 3A.2A)

3A.2A. Court’s duty to consider making participation directions: victims of domestic abuse

(1) Subject to paragraph (2), where it is stated that a party or witness is, or is at risk of being, a victim of domestic abuse carried out by a party, a relative of another party, or a witness in the proceedings, the court must assume that the following matters are diminished—

(a) the quality of the party’s or witness’s evidence;

(b) in relation to a party, their participation in the proceedings.

(2) The party or witness concerned can request that the assumption set out in paragraph (1) does not apply to them if they do not wish it to.

(3) Where the assumption set out in paragraph (1) applies, the court must consider whether it is necessary to make one or more participation directions.

(Attention is drawn to Practice Direction 27C, which makes provision for the attendance at hearings, without the need for an order of the court, of Independent Domestic Violence Advisers and Independent Sexual Violence Advisers.)

The judge has a duty to assume that the quality of my witness evidence and my participation in the proceedings are diminished.

The judge has a duty to consider making participation directions.

In line with his duty, the judge engaged the rules of FPR Part 3A “Vulnerable persons: participation in proceedings and giving evidence”.

The judge made participation directions for the conduct of my cross-examination and made provisions for my attendance at the final hearing. These participation measures are reviewed in detail below.

Court’s failures:

The judge has a duty to assume that my capacity to participate in the proceedings is diminished.

1. The judge failed to consider my diminished capacity to participate in the proceedings.

2. The judge failed to make participation directions in relation to my diminished capacity to participate in the proceedings.
3. The judge failed to mention FPR 3A in his judgement made on 18 April 2024.
4. The judge failed to mention the participation directions he ordered for my cross-examination.
5. The judge failed to mention the participation directions he ordered for my attendance at the final hearing.
6. The judge's description of my presentation in his judgment is not consistent with the records in the court transcripts.
7. The judge's findings about my presentation as a witness fail to mention FPR 3A, and the participation measures he made to assist me during my evidence. Also, he failed to mention my mental health disabilities and the impact they have on my presentation and on my behaviour. His findings about my presentation as a witness are derogatory, harmful, and baseless. This is further amplified by the fact that my disabilities were suppressed.
8. The judge's findings are not supported by the court transcripts of the hearing.

Note

3A. Reference is made at various points in this Practice Direction to making findings of fact in relation to domestic abuse. It should be noted that Part 3A FPR makes provision in relation to victims of domestic abuse in the specific context of participation in proceedings and giving evidence. In that context, it is not necessary for the court to make findings of fact in relation to domestic abuse before assuming that a party or witness is, or is at risk of being, a victim of domestic abuse carried out by a party, relative of another party, or a witness in the proceedings: see rule 3A.2A FPR.

Ground 4: Court's failure in its duty to consider how a party can participate in the proceedings (FPR 3A.4 and 3A.5)

3A.4

(1) The court must consider whether a party's participation in the proceedings (other than by way of giving evidence) is likely to be diminished by reason of vulnerability and, if so, whether it is necessary to make one or more participation directions.

(2) Before making such participation directions, the court must consider any views expressed by the party about participating in the proceedings.

Court's duty to consider how a party or a witness can give evidence

3A.5.

(1) The court must consider whether the quality of evidence given by a party or witness is likely to be diminished by reason of vulnerability and, if so, whether it is necessary to make one or more participation directions.

(2) Before making such participation directions, the court must consider any views expressed by the party or witness about giving evidence.

In Part 3A, the following interpretations apply:

"Participation direction" means:

- a) a general case management direction made for the purpose of assisting a witness or party to give evidence or participate in proceedings; or*
- b) a direction that a witness or party should have the assistance of one or more of the measures in rule 3A.8; and*

References to "quality of evidence" are to its quality in terms of completeness, coherence and accuracy; and for this purpose "coherence" refers to a witness's or a party's ability in giving evidence to give answers which address the questions put to the witness or the party and which can be understood both individually and collectively.

Court's failure to consider 3A.4

Rule 3A.4 FPR places a duty on the court to consider whether a party's participation in the proceedings is likely to be diminished by reason of vulnerability and, if so whether it is necessary to make one or more participation directions (as defined in rule 3A.1 FPR).

Rule 3A.5 FPR places a duty on the court to consider whether the quality of evidence given by a party or witness is likely to be diminished by reason of vulnerability and, if so whether it is necessary to make one or more participation directions.

As previously mentioned, the court made participation directions on 20th February 2024 under 3A.5 to ensure the quality of my evidence would not be diminished by reasons of vulnerability.

The court failed in its duty under 3A.4 to consider whether my participation in the proceedings (other than by way of giving evidence) is likely to be diminished and, if so, whether it is necessary to make one or more participation directions.

The court failed to ensure consistency and continuity of the participation measures after the hearing.

The following aggravating factors occurred after the final hearing and caused me to become incapacitated.

- a) **28 February.** Final hearing ends.
- b) **6 March.** My solicitors come off the record as I have run out of funding. My barrister cannot represent me on a direct instruction basis.
- c) **7 March.** I inform the judge that the respondent committed perjuries at the hearing, and I send evidence of the perjuries and evidence of undisclosed \$500,000 earnings. I also inform the judge that the respondent is in contempt of the maintenance pending suit order and that the children and I are experiencing economic hardship.
- d) **24 March.** Life threatening incident, Kensington, London, involving our 16-year-old daughter.
- e) **8 April.** I write to the judge to inform him that the children and I are exposed to life threatening danger related to the respondent's criminal activities. I provide details of other incidents and an overview of the "organization" the respondent works for.
- f) **18 April.** The final judgment is handed down. I have written several times to the judge, seeking enforcement of the MPS order and informing him that I do not have the capacity to review the final judgment and make the orders for costs and final order without legal assistance. I also inform the court that my mental health symptoms have significantly worsened due to the continued exposure to life threatening danger, lack of financial resources, and lack of support in the proceedings.
- g) **18 April to 2 May.** My support structure has collapsed, my disabilities have incapacitated me, and the court has failed in his duty under 3A.4 to consider whether my participation in the proceedings (other than by way of giving evidence) is likely to be diminished and, if so, whether it is necessary to make one or more participation

directions. The table below provides a timeline of the period from the end of the final hearing on 28 February to the final order made on 24 May. I was not able to participate and being aware of it, I asked the court for assistance in order to ensure equal footing and a fair trial. My emails to the court are in exhibits NZ2 and NZ3. The court knew I was disabled, frozen with anxiety and fear, overtaken with PTSD and autism symptoms, incapacitated, and unable to function. The court failed in its duty to Part 3A.

Practice guidance 3AA.4: Participation directions: participation other than by way of giving evidence

4.1 This section of the Practice Direction applies where the assumption at rule 3A.2A FPR applies to a party, or where a court has concluded that a party's participation in proceedings (other than by way of giving evidence) is likely to be diminished by reason of vulnerability, including cases where a party might be participating in proceedings by way of asking questions of a witness.

4.2 The court will consider whether it is necessary to make one or more participation directions, as required by rule 3A.4 and rule 3A.2A. The court may make such directions for the measures specified in rule 3A.8. In addition, the court may use its general case management powers as it considers appropriate to facilitate the party's participation. For example, the court may decide to make directions in relation to matters such as the structure and the timing of the hearing, the formality of language to be used in the court and whether (if facilities allow for it) the parties should be enabled to enter the court building through different routes and use different waiting areas.

Ground 5: Court's failure in its duty to assist a protected party participate in proceedings (Part 15 and Part 3A.6)

3A.6.

(1) The court must consider whether it is necessary to make one or more participation directions to assist—

(a) the protected party participating in proceedings; or

(b) the protected party giving evidence.

(2) Before making such participation directions, the court must consider any views expressed by the protected party's litigation friend about the protected party's participation in the proceedings or that party giving evidence.

(Part 15 contains rules about representation of a protected party. Practice Direction 15B contains provisions about the ability of a protected party to give evidence.)

Ground 6: Court's failure in its duty to consider the factors in 3A.7 to assist me in participating in the proceedings.

3A.7

When deciding whether to make one or more participation directions the court must have regard in particular to—

(a) the impact of any actual or perceived intimidation, including any behaviour towards the party or witness on the part of—

(i) any other party or other witness to the proceedings or members of the family or associates of that other party or other witness; or

(ii) any members of the family of the party or witness;

(b) whether the party or witness—

(i) suffers from mental disorder or otherwise has a significant impairment of intelligence or social functioning;

(ii) has a physical disability or suffers from a physical disorder; or

(iii) is undergoing medical treatment;

(c) the nature and extent of the information before the court;

(d) the issues arising in the proceedings including (but not limited to) any concerns arising in relation to abuse;

(e) whether a matter is contentious;

(f) the age, maturity and understanding of the party or witness;

(g) the social and cultural background and ethnic origins of the party or witness;

(h) the domestic circumstances and religious beliefs of the party or witness;

(i) any questions which the court is putting or causing to be put to a witness in accordance with

section 31G(6) of the 1984 Act();

(j)any characteristic of the party or witness which is relevant to the participation direction which may be made;

(k)whether any measure is available to the court;

(l)the costs of any available measure; and

(m)any other matter set out in Practice Direction 3AA.

Ground 7: Court's failure to consider measures in 3A.8 to assist me in participating in the proceedings.

3A.8

(1) The measures referred to in this Part are those which—

(a)prevent a party or witness from seeing another party or witness;

(b)allow a party or witness to participate in hearings and give evidence by live link;

(c)provide for a party or witness to use a device to help communicate;

(d)provide for a party or witness to participate in proceedings with the assistance of an intermediary;

(e)provide for a party or witness to be questioned in court with the assistance of an intermediary; or

(f)do anything else which is set out in Practice Direction 3AA.

(2) If the family court makes a direction for a measure which is not available where the court is sitting, it may direct that the court will sit at the nearest or most convenient location where the family court sits and the measure is available

(3) If the High Court makes a direction for a measure which is not available where the court is sitting, it may direct that the court will sit at the nearest or most convenient location where the High Court sits and the measure is available.

(4) Nothing in these rules gives the court power to direct that public funding must be available to provide a measure.

(5) If a direction for a measure is considered by the court to be necessary but the measure is not available to the court, the court must set out in its order the reasons why the measure is not

available.

Ground 8: Court's failure to record reasons for decisions made under Part 3A.

When the duties of the court apply and recording reasons for decisions made under this Part 3A.9

(1) The court's duties under rules 3A.3 to 3A.6 apply as soon as possible after the start of proceedings and continue until the resolution of the proceedings.

(2) The court must set out its reasons on the court order for—

(a) making, varying or revoking directions referred to in this Part; or

(b) deciding not to make, vary or revoke directions referred to in this Part, in proceedings that involve a vulnerable person or protected party.

Court's failure under 3A.9

The judge made orders for participation measures at the start of the final hearing on 20 February 2024 to assist me in giving my "best witness evidence" to the court.

The judge failed to record his decision and the reasons.

More disturbingly, the judge makes no mention whatsoever of Part 3A in his judgment of 18 April 2024, nor does he mention my mental health disabilities, including my PTSD and autism disorders which are material to every aspect of the case and impede and restrict my daily social and occupational functioning.

After the hearing, from 28 February to date my entire support structure collapsed. I have had no legal assistance, no legal representation, and no maintenance payments since February. When my daughter and I were involved in a life-threatening incident, it triggered significant fear and trauma symptoms, and I have not been able to function normally since then. I have not been able to calm down my nervous system. This heightened state has impaired all my functions: my cognition, and mood have significantly decreased, and my hyperarousal is overwhelming. I cannot concentrate on tasks, even the simplest ones. I am in a frozen state, mostly trying not to feel the psychological violence raging inside of me, the resistance against the insidious oppression.

Against this backdrop, while the court and opposing counsel were aware of my circumstances, the judge revoked the participation measures at the hearing.

The is a failure to uphold the rules under Part 3A, which state that the court's duties under rules 3A.3 to 3A.6 apply as soon as possible after the start of proceedings and continue until the resolution of the proceedings.

Furthermore, the court failed to record the reasons for its decision to revoke and its decision not to make participation directions under Part 3A in proceedings that involve a vulnerable person or protected party.

Ground 9: Court's failure to follow the procedures where the court makes directions of its own initiatives as set out in rule 4.3(2) to (6).

Procedure where the court makes directions of its own initiative

3A.11

Where the court proposes to make a participation direction of its own initiative the procedure set out in rule 4.3(2) to (6) applies.

Court's power to make order of its own initiative (Part 4.3)

4.3

(1) Except where an enactment provides otherwise, the court may exercise its powers on an application or of its own initiative.

(Part 18 sets out the procedure for making an application.)

(2) Subject to rule 29.17, where the court proposes to make an order of its own initiative –

(a) it may give any person likely to be affected by the order an opportunity to make representations; and

(b) where it does so it must specify the time by and the manner in which the representations must be made.

(3) Where the court proposes –

(a) to make an order of its own initiative; and

(b) to hold a hearing to decide whether to make the order,

it must give each party likely to be affected by the order at least 5 days' notice of the hearing.

(4) The court may make an order of its own initiative without hearing the parties or giving them an opportunity to make representations.

(5) Where the court has made an order under paragraph (4) –

(a) a party affected by the order may apply to have it set aside^(GL), varied or stayed^(GL); and

(b) the order must contain a statement of the right to make such an application.

(6) An application under paragraph (5)(a) must be made –

(a) within such period as may be specified by the court; or

(b) if the court does not specify a period, within 7 days beginning with the date on which the order was served on the party making the application.

Court's failures under 3A.11

1. The court made an order for participation measures of its own initiative without hearing the parties or giving them an opportunity to make representations, as set out in rule 4.3 (4).
2. The court failed to record the order as per 4.3 (5).
3. The court's failure to make an order under paragraph 4.3 (4), caused a secondary procedural failure, as in the absence of an order, the court also failed to record a statement informing the parties of their right to make an application to set aside, vary, or stay the order, in breach of the rules set out in 4.3(5)(b).
4. The parties affected by the order were denied their right to apply to have it set aside, varied or stayed.

Ground 10: Court's failure to consider Part 15 - representation of protected parties (FPR 15.3)

15.3 Stage of proceedings at which a litigation friend becomes necessary

(1) person may not without the permission of the court take any step in proceedings except –

(a) filing an application form; or

**(b) applying for the appointment of a litigation friend under rule 15.6,
until the protected party has a litigation friend.**

(2) If during proceedings a party lacks capacity (within the meaning of the 2005 Act) to continue to conduct proceedings, no party may take any step in proceedings without the permission of the court until the protected party has a litigation friend.

(3) Any step taken before a protected party has a litigation friend has no effect unless the court orders otherwise.

Practice direction 15B

1.3

If at any time during the proceedings there is reason to believe that a party may lack capacity to conduct the proceedings, then the court must be notified and directions sought to ensure that this issue is investigated without delay. The presumption of capacity should not be forgotten. For example, where a person has an identified difficulty such as a learning disability or a mental illness, that difficulty should not automatically lead to an investigation about that party's capacity to litigate. Where a party has a solicitor, the starting point is whether that solicitor has concerns about the party's capacity to litigate.

Fluctuation in a party's capacity to conduct litigation

4.1

A party's capacity to conduct the litigation may fluctuate over the course of the proceedings. Litigation capacity may be lost or regained during the proceedings as a result of deterioration or improvement in the impairment of, or disturbance in the functioning of, the party's mind or brain. The necessity for expert evidence or evidence of a treating clinician as to a party's capacity can therefore arise at any time during the proceedings.

4.2

Fluctuation in a party's capacity to conduct litigation means that a litigation friend may not represent that party throughout the proceedings. It is expected that where the litigation friend has been appointed or reappointed, the court will be likely to make a direction in accordance with FPR 25.10(2) permitting such a litigation friend to put written questions to the expert after the 10 day period referred to in FPR 25.10(2)(c) where the 10 days referred to in that rule would be insufficient time for the litigation friend to become familiar with the case or latest developments in the case while assimilating the expert's report and formulating any questions.

Ground 11: Court's failures under Practice Direction 3AA

Practice Direction 3AA

2.2 As provided by rule 3A.2A FPR, where it is stated that a party or witness is, or as at risk of being, a victim of domestic abuse carried out by certain third parties, it is to be automatically assumed for the purposes of Part 3A FPR that they are vulnerable. For such parties and witnesses, the court should proceed directly to a consideration of whether a participation direction is necessary.

3. Guidance about vulnerability: rule 3A.3(2) FPR

3.1 Rule 3A.3 FPR requires the court to have regard in particular to the matters set out in paragraphs (a) to (j) and (m) of rule 3A.7 FPR when considering the vulnerability of a party or witness other than a protected party or victim of domestic abuse. The court should require the assistance of relevant parties in the case when considering whether these factors or any of them may mean that the participation of any party or witness in the case is likely to be diminished by reason of vulnerability. When addressing this question, the court should consider the ability of the party or witness to-

- a) understand the proceedings, and their role in them, when in court;
- b) put their views to the court;
- c) instruct their representative/s before, during and after the hearing; and**
- d) attend the hearing without significant distress.

4. Participation directions: participation other than by way of giving evidence

4.1 This section of the Practice Direction applies where the assumption at rule 3A.2A FPR applies to a party, or where a court has concluded that a party's participation in proceedings (other than by way of giving evidence) is likely to be diminished by reason of vulnerability, including cases where a party might be participating in proceedings by way of asking questions of a witness.

4.2 The court will consider whether it is necessary to make one or more participation directions, as required by rule 3A.4 and rule 3A.2A. The court may make such directions for the measures specified in rule 3A.8. In addition, the court may use its general case management powers as it

considers appropriate to facilitate the party's participation. For example, the court may decide to make directions in relation to matters such as the structure and the timing of the hearing, the formality of language to be used in the court and whether (if facilities allow for it) the parties should be enabled to enter the court building through different routes and use different waiting areas.

Ground 12: Court's failure to consider autism sensory overwhelm and mental health disabilities in judgment and in findings about my character.

As mentioned above, recent research shows that autistic people's sensory systems are very different, and they have neurons that are more hyperconnected than neurotypicals.

Difficulties with sensory processing can trigger nervous system overload. Sensory inputs are the first way we interact with and understand the world around us. Our sensory systems (e.g., touch, smell, sound, sight) automatically process and translate input into meaningful information. However, individuals with impaired nervous systems experience and use sensory inputs differently. The brain perceives highly dysregulated sensory inputs as a literal threat to survival which initiates the fight, flight, freeze response.

When things are overwhelming, the central nervous system is in overload, and this can result in a complete meltdown.

An autistic adult experiences this loss of control by crying, screaming or physically lashing out. Or they may lock themselves in a room, run away or shut down, even lose basic skills like their ability to speak. For some, meltdowns can reach crisis levels and include self-harm and suicidal ideation. I have severe difficulties with processing sensory information in my day-to-day life, especially sounds. I can become very anxious and distressed, and if I become overwhelmed, I shut down. I mostly cope with sensory difficulties by rocking my body, putting my hands over my ears to block the sound, or humming rhythmically. This behaviour is often interpreted as odd by people who are unfamiliar with autism-related sensory difficulties.

The general public is typically not aware that individuals with autism can experience extreme distress from sensory difficulties. These are a huge problem for me. Individuals with sensory anxiety will adopt coping mechanisms which provide short-term relief and soothing, for example

rocking or humming. These behaviours may be overt (e.g. closing their eyes, humming to drown out external noise) or covert (e.g. blocking out speech to focus on body language).

Unfortunately, these behaviours are likely to be perceived as bizarre and unusual, and they can become wrongfully identified as the problem, while the underlying, invisible difficulty remains unknown. This robs people with autism from the support and understanding they need.

These matters must be addressed as early as possible at the grounds rules hearing (GRH). The salient autism symptoms such as sensory difficulties must be identified early, and appropriate directions be made. The judge must be aware of the party's salient autism features because they are pervasive and they affect the psychological, emotional, and cognitive processes, thereby having a direct impact on the quality and coherence of the witness evidence.

Ground 13: Procedural irregularities in the final order and cost orders

Direction 3AA supplements the provisions in these rules.

1.3. It is the duty of the court (under rules 1.1(2); 1.2 & 1.4 and Part 3A FPR) and of all parties to the proceedings (rule 1.3 FPR) to identify any party or witness who is a vulnerable person at the earliest possible stage of any family proceedings.

1.4. All parties and their representatives are required to work together with the court and each other to ensure that each party or witness can participate in proceedings without the quality of their evidence being diminished and without being put in fear or distress by reason of their vulnerability as defined with reference to the circumstances of each person and to the nature of the proceedings.

Toolkit 13 - Vulnerable witnesses and parties in the family courts

General duties and responsibilities of advocates

Advocates should be alert to risk factors which may indicate that a witness or party in family proceedings is vulnerable and, where necessary, expert advice should be sought. General risk factors which suggest a witness is vulnerable are outlined in Toolkit 10 - Identifying vulnerability in witnesses and defendants. The Bar Standards Board Handbook 2018 provides that the barrister should ensure that the interests of vulnerable clients and their needs are taken into account

(oC14) and barristers should do what they reasonably can to ensure that the client understands the process and what to expect from it and from their barrister. It also states that barristers should also try to avoid any unnecessary distress to the client (gC41).

However, the core duties with which barristers are required to comply, include the duty:

- to observe your duty to the court in the administration of justice (CD1);
- to act in the best interests of each client (CD2);
- to act with honesty and integrity (CD3);
- not to behave in a way which is likely to diminish the trust and confidence which the public places in you or in the profession (CD5);
- not to discriminate unlawfully against any person (CD8).

Solicitors are subject to similar duties, to uphold the rules of law and proper administration of justice, and to provide a proper standard of service to clients including vulnerable clients (principles 1 and 5 Solicitors Regulation Authority Code of Conduct 2011).

These duties mean that all advocates have a responsibility to assist the court to identify and appropriately respond to the vulnerability of parties and other witnesses. In addition, it is suggested that advocates should, as part of their duty to assist the court in the administration of justice, assist the court as a public authority in its duty to act compatibly with the European Convention on Human Rights, especially articles 6 and 8.

Failure in duty under 3AA and irregularities in the order made on 24 May 2024.

*“Further Fairness in legal process demands that the affected citizen is able to *participate effectively: to be adequately informed about critical choices, to trust that a neutral arbiter will enable their engagement and hear their voice, and therefore to be able to exert influence on the outcome of the proceedings. Such participation is not merely concerned with litigant satisfaction but with legal legitimacy*”.*

Opposing counsel was not a neutral arbitrator, and the court failed in its duty under Part 3A and PD 3AA to ensure my participation in the proceedings.

Irregularities in the process of court orders:

- I. **2 May at 12:25pm.** I filed form D50K seeking enforcement of the MPS order.

- II. **2 May at 4:59pm.** Ms. Campbell KC sent me the draft order on behalf of the respondent and stated: *"These are the documents that I will be submitting tomorrow"*. The draft order did not have any mention of periodic payments.
- III. **Cost orders were not shared.**
- IV. **3 May at 2:08pm.** Ms. Campbell KC emailed a different version of the draft order to the judge's clerk and did not mention that this was not the same draft order as the one sent to me on 2 May. She added para. 34 and the following comment, presumably to the attention of the respondent: ***"New to deal with unpaid historic periodical payments"***. She did not state in her email that there were any amendments, additions, or deletions in the draft order relative to the one she had emailed me the previous day.
- V. **14 May at 3:45pm.** Ms. Campbell emailed the judge another draft order.
- VI. **24 May at 12:29pm.** The judge's clerk replied:

"Dear Ms. Campbell,

Thank you for your email and draft order which has been put before the judge.

Please find attached the amended and approved order.

I have asked the RCJ urgent orders team to draw, seal and serve.

Many thanks

Kind regards, Karen"

This draft includes 6 news paragraphs which did not exist in the preceding version of the draft order of 14 May 2024 prepared by Ms. Campbell.

The draft order of 24 May 2024 shows that the changes were made by Ms. Campbell KC, not by the judge.

- Therefore, the court and counsel failed to copy me in all draft orders.
- Secondly, para. 34 cancelling the MPS order was not made by the judge, it was made by counsel, immediately after I filed an application for enforcement of the MPS order on 2 May 2024. However, at
- The comments included in the draft orders demonstrate that opposing counsel took advantage of my disabilities to advance her client's best interest.

- Opposing counsel took advantage of my disabilities to make an order which perpetuates the oppression of the respondent.
- Opposing counsel failed in her duty to assist the court as a public authority in its duty to act compatibly with the European Convention on Human Rights, especially articles 6 and 8.
- I was not able to participate in the proceedings because of my mental health disabilities.

Ground 14: MPS order was unlawfully revoked.

The maintenance order made on 8 July 2023 is in effect until the Decree Absolute.

*7.1 The Respondent shall pay to the Applicant maintenance pending suit (**to the date of decree absolute, interim periodical payments thereafter**) from 1 July 2023 until further order at the following rates:*

- (a) £18,762 per month, payable monthly in advance by standing order to the Applicant's Barclays account 50021432 (or such other account as the Applicant may notify the Respondent of in writing), the first payment to be made on or before 3 July 2023 and on the 1st of each month thereafter (or the nearest preceding working day);*
- (b) Such sum as shall be equivalent to the children's school fees and all reasonable extras, summer tuition and university expenses (including tuition, board, and living expenses); such sums to be paid to the Applicant no less than 14 days before they shall fall due upon production of the relevant invoice so that she may pay the bursar of the relevant institution on behalf of the children;*
- (c) Payment by 3 July 2023 to the Applicant of the children's Easter holidays educational support and revisions for A levels and GCSEs for a total of £10,725.*
- (d) Payment to the Applicant for the applicant's move to London, including her rental deposit, storage and all reasonable expenses associated with the Applicant and the children's move to London, payable upon production of the relevant invoice(s) and paid no less than 7 days before payment shall fall due.*

In para. 68 of his judgment dated 9 June 2023, Mr. MacDonald stated: "The wife has plainly established her need for maintenance pending suit. She has no current employment and is required to maintain herself and the children of the family pending the determination of these

proceedings. I accept that, during the course of the marriage, the family had a very high standard of living.”

In para. 69, the judge added: **“Pending the determination of proceedings, the husband must make reasonable provision for the wife’s rent, absent which provision I am satisfied she would not be able to secure reasonable accommodation.”**

The respondent has withheld the maintenance pending suit payments since February 2024.

I have requested enforcement of the MPS orders numerous times since 6 March 2024 to date, in hundreds of emails to counsel, to my solicitors, and to the court. I filed an application on form D50K for enforcement of the maintenance payments on 2 May 2024 at 12:25pm and copied the clerk and the respondent’s counsel. I then emailed the court several times on 2 May 2024, seeking assistance with the application for enforcement (NZ2 p.106). I did not receive a reply.

“Please could you ask his Lordship to enforce this order, I need food and accommodation urgently. I need to eat; I am hungry, and I have anemia. If he cannot, please could you ask him to set out his reasons and what my options are. I don’t have legal representation; therefore, my options are very limited”.

On 2 May at 4:58pm, opposing counsel sent me a draft order stating: “These are the documents that I will be submitting tomorrow”. She made no mention of periodical payments.

The draft order she sent to the judge on 3 May 2024 at 2:08pm was completely different and contained several amendments and additions which had not been disclosed prior to sending to the judge. Paragraph 34 was added, with a comment, presumably for the benefit of the respondent, stating: “New to deal with unpaid historic periodical payments.” Opposing counsel unilaterally added paragraph 34 to cancel the periodic payments on 3 May and did not inform me about the changes.

Despite knowing that the children and I are hungry, homeless, and extremely distressed, despite knowing that I am vulnerable, and suffer from debilitating PTSD and ASD symptoms which impair and limit my everyday functioning, the court and opposing counsel remained indifferent to our economic hardship, and in fact, they took actions to defeat my application for enforcement of the maintenance order.

Justice Francis wrote on 7 May 2024 that the application to enforce the MPS order had not been reviewed because I had not yet paid the court fee, and that once I paid the fee, the application would be reviewed as per the normal court procedures.

Ms. Campbell KC knew then that she had already amended the court order and added para. 34 which cancels all payments in arrears. She had sent the amended order including the newly added para. 34 concerning Periodic Payments on 3 May 2024 at 2:08pm. It is unclear why Ms. Campbell KC never mentioned this to Justice Francis in their email exchange of 7 and 8 May. We wrote back and forth regarding the MPS enforcement order, and Ms. Campbell failed to mention para. 34.

The maintenance order cannot be cancelled without notice.

The court was wrong to not enforce the MPS order. I have been asking since 6 March. The court failed in its duty to consider the circumstances of the case and the welfare of the children. The court did not take into consideration our economic hardship. The court's power to vary, or discharge shall not take effect until the expiration of such period as may be specified in the order. Part II of the Matrimonial Causes Act 1973 section 31 deals with variation, discharge, etc. of certain orders for financial relief. It states that subject to certain provisions, the court shall have the power to vary or discharge the order, or to vary or discharge the order or to suspend any provision thereof temporarily and to revive the operation of any provision so suspended.

In exercising the powers conferred by this section the court shall have regard to all the circumstances of the case, **first consideration being given to the welfare while a minor of any child** of the family who has not attained the age of eighteen, and the circumstances of the case shall include any change in any of the matters to which the court was required to have regard when making the order to which the application relates, and—

in the case of a periodical payments or secured periodical payments order made on or after the making of a divorce or nullity of marriage order, the court shall consider whether in all the circumstances and after having regard to any such change it would be appropriate to vary the order so that payments under the order are required to be made or secured only for such further period as will in the opinion of the court be sufficient in the light of any proposed exercise by the court, where the marriage has been dissolved, of its powers under subsection (7B) below) to

enable the party in whose favour the order was made to adjust **without undue hardship** to the termination of those payments.

The court has failed to explain why, having made an order for maintenance in June 2023, it is not enforcing it and allowing this situation of hardship and abuse.

The maintenance payments are our only source of funds for food, rent, and basic necessities. I have no assets and no savings. All the matrimonial assets are under the sole control and ownership of the respondent. **He has not made any payment since February 2024.** We lost our home in July 2023 because the respondent stopped paying the rent. We are completely reliant on the maintenance payments for our subsistence, for the children's expenses, for housing, travel, food, basic necessities, academic tutors, medical insurance, absolutely everything. Our 17-year-old daughter has developed trauma symptoms and eating disorders as a result of the ongoing insecurity and powerlessness she feels.

Ground 15: Execution of the order must be stayed because the numbers are wrong and because the process was procedurally unfair.

- a) My mental health disabilities impeded my participation, and the court failed to make participation measures.
- b) Opposing counsel did not share the draft orders
- c) Opposing counsel did not share the cost orders.
- d) Opposing counsel did not take account of my input for the draft order.
- e) Nothing in the draft order was agreed between the parties.
- f) Opposite counsel took advantage of my vulnerabilities to unilaterally add paragraphs which increased the respondent's power and financial control post separation.
- g) Tax computation numbers are wrong
- h) Valuations of properties are wrong
- i) Judgment and order did not consider the LLC fraud.
- j) Judgment did not explain the reasoning for Coinbase/Topanga, Gemini, Xapo and other non-disclosures.
- k) Judgement does not provide explanation for Oxus. It is not true that I agreed that Oxus is non-matrimonial. Oxus is not new evidence, as the judgment claims. It is the proof that the respondent committed perjury. The undisclosed amount of \$500,000 is not an equity holding, it is income.

- l) The judgment fails to address my email of 8 and 9 April 2024 informing the court that my 17-year-old daughter and I were involved in an incident which represents a tangible danger to our safety. Simply stating that the information I sent is “difficult to follow” is not acceptable. The court must coordinate with the Metropolitan Police to ensure our safety. It is not accepted that the information is “difficult to follow” and appeal to the Court of Appeal to take our safety seriously.

I attach the LLC fraud and respectfully request that the order be stayed urgently to avoid more difficulties in the US.

Ground 16: Inconsistencies judgment vs. evidence (applicant) and presence of bias.

As mentioned above, the judge made participation measures on 20 February 2024 when it became clear the final hearing may have to be postponed due to the severity of my trauma and autism symptoms.

The judge ordered several participation measures as follows:

- i. **The judge ordered frequent breaks and closely monitored my performance as a witness.**

The judge enquired frequently about my state of mind and asked me several times how I was doing. The following is an excerpt from the transcript notes.

Day 1 – Wednesday 21st February 2024

- At 12:56pm on 21st February 2024, he said: ***“Pause, I think I can take notice of that fact. NZ has been in the witness box for some time, there will be some time to go. Break for lunch.”***
- At 14:30pm, the judge asked: ***“You alright?”*** I replied: “Yes, yes”
- At 14:40pm, the judge ordered: ***“short break, lawyers will tell me when to go back.”***
- Approx. 15.00 to 15.30pm, the judge asked: ***“Are you okay?”***. I replied “yes”.
- At 16:13pm, the judge ordered: ***“I am going to pause matters there. I am going to make sure you are in a position to give your best evidence so we will pause.”***

Day 2 – Thursday 22nd February 2024

- At 10:32am. **Ms. Campbell** made the following statement: *“Before I continue with cross examination, at the bar, we have reached a conclusion, Ms Zahmoul has given a lot of evidence. BM won’t make any objection, if I make reference to the statement without putting each point to NZ because we would be here forever, not going to put*

any further points on the non-disclosure. Mr Zahmoul rejects her case on non-disclosure, I have gone through some questions with NZ and she has made her points."

- The judge replied: ***"Sensible, thank you for having that discussion"***.
- At 12:50pm. The judge asked: ***"How long do we think we have left?"*** Ms. Campbell replied: "Another hour, I may possibly be able to refine that. It would help me to narrow my questions if we had a slightly longer break. ***I have no objection to NZ being supported if she needs that. If we came back at 2:30 or even 3 o'clock?"***

- ii. The judge ordered that a pupil assist me with the court bundle, which consisted of 6,000 pages in 5 binders. The pupil supported me in the witness box throughout my witness evidence.
- iii. The judge prohibited and restricted questions which he knew were related to domestic abuse and would very likely trigger distress and trauma symptoms. As such, when Ms. Campbell asked me about the Cigna insurance matter, the judge directed her to move on and skip the question entirely as he knew it was directly related to domestic abuse. He stated: ***"I know this is a big one, I understand this, and I am going to ask Ms. Campbell KC to move past it."*** (see transcript below)
- iv. The judge directed other controversial questions to be asked by my barrister, Brent Molyneux KC.
- v. **Use of curtains.** The judge permitted the use of curtains during the respondent's cross examination because it was evident that I could not cope with having to listen to his account of the facts and his lies, gaslighting, and manipulations. I was physically in pain and it showed.
- vi. The judge permitted my solicitor to be with me behind the curtain. Despite all these measures, and my solicitor's presence, I was extremely distressed, and I could not control my behaviour. I was lying in a fetal position on my solicitor's lap. I was rocking, humming, blocking my ears with both hands, tensing my body, crying, and in pain.

Ground 17: Inconsistencies judgment vs. evidence (respondent) and presence of bias.

Transcripts of the respondent's witness evidence are below.

The judgment is not consistent with the respondent's witness evidence and is not supported by the court transcripts.

The evidence demonstrates that the respondent lacked credibility, was dishonest, lied about Coinbase, did not disclose assets, engaged in manipulation and gaslighting, made disparaging remarks about my mental health to my own solicitors with a malicious intent to harm me, and had a bad character.

The judgment is unsupported by the evidence in the court transcripts.

Baseless findings and presence of bias.

Excerpt 1:

BM 1676 please. A couple of things by way of explanation, what the assets are and how we got to where we got to, with such a difference in presentation between what Nadia thinks the asset base is. In amongst over criticisms of Nadia, you wrote this to Burgess Mee. You say '**lastly I am enclosing a list of books over the years ..during therapy period...believed Nadia had borderline personality disorder and PTSD...not to expose Nadia but make you aware of your actions, take advantage of someone who is may not be well**' Nadia sees this as being characteristic of what some men do to women, to tell them they are unwell to undermine them, she thinks this is what you were doing with her solicitors, that is a fair criticism isn't it?

KZ Its a spin, not a criticism. I have done since beginning of Nadia serving me, this has been written, we have been in proceedings for 1051 days since FDA. This was done after so many attempts of reaching out to Nadia, my first email to miss Bloom to offer any explanation with any expert and nobody was engaging. I was articulating what I was experiencing in earnest. We bought a house together Wyoming joint. I should have said you take one house I take the other, I wrote an email on June 3rd explaining what had happened to our assets, she gave court origami to our friends she didn't want to engage.

➤ **J As I understand it, this email was written to progress things**

KZ Yes

BM Do you regret writing it in those terms, was it helpful to write?

KZ I thought it when I wrote it, similar to her when she write, I am not a Russian oligarch, I worked hard for my money, If I offended I am sorry. I pleaded around that time for her to be rational. I

wrote to her Mackenzie friend Monica McGregor, she is a forensic expert, I asked her to ask any question she wanted, I was despairing she didn't respond.

BM I am going to be explaining to His Lordship it is a case in which every action has an equal and opposite reaction. **You reference your belief that Nadia suffers from PTSD, if you look at 2164, there is a letter from Professor Libby that you exhibit to one of your statements.** This is a letter you exhibit to your statement, you were relying on it, 12 July 2022. **'I write in some urgency...I understand you are acting for her in divorce proceedings...I am treating symptoms of PTSD'** keep that in mind, look at 477. Hearing In June 2023. One of the advantages of you having acted in person, your words are not said through medium of a barrister, you speak your words 'don't believe there is liquidity...**she suffers from PTSD...this is reminiscent of 2014'** **I want to put to you that you present as if this PTSD is sprung on you as a device, you knew Nadia is someone who had been unwell and the proceedings would trigger her.**

KZ Fair thing to say, some context, letter is 12 July, remember when that was, day we had a mediation session. Then the next day you made an appeal on the Cigna policy, an appeal, when you had the letter, at the time this letter was available on July 13th, you decided to use compassionate grounds to get judge cope to overturn her order, to give me access as a father to my children medical proceedings, they were rightly mine, that is what I was trying to say.

BM **Nadia you know is someone who values transparency and feels the need not to be misled or feel that things are being hidden from her, these proceedings particularly in relation to Topanga have triggered her and made it hard for her to believe anything said.**

KZ The reason I didn't want to get divorced and purchased a house on the basis we were not going to get divorced, and October 2021 she sent me a letter to postpone everything 1 year or this is a form E and you have 1 month to put it together. **Of course it increases her PTSD, but I didn't do this, I was trying to stop this occurring, we renewed the vows, I stayed with her, I wanted to maintain her assets. I didn't want to get divorced; I don't deal well with ultimatums and that is how I reacted.**

BM **A fair summary is that Nadia is someone who deals badly with being misled but you don't feel you are someone who misled her**

KZ Yes

Excerpt 2:

KZ You think I was focused on Coinbase, my father had passed away, family falling apart if that is what you think, then fine.

➤ **J Being petulant in your answers is not going to help me, what is being put to you is that you knew, did you know or not?**

KZ Did I know about Coinbase, potentially. I knew that things had happened in the past, many things can happen, I am superstitious I didn't want to assume things, same thing as I know Coinbase 15 million euros. I don't have access to my shares I don't have access to Topanga canyon, my friend Mike Deeg when we invested in Coinbase we never spoke to them or had feedback, tried to get updates from Steve Jones but we weren't getting them, wasn't 100% sure

BM Nobody is taking that point, so I am going to press on 'please advise what else you need...' you enclose the asset schedule prepared before by Mr Ray. Top of that page, split of the number titled 'in case you are serious' you continue, clearly all the numbers have changed, the bank accounts can split 50/50..pension we should split...tax consequences, let me know when...if this goes to lawyers' **I am going to be saying this is one of the most important pages in the 4,000, you are setting the parameters for a negotiation aren't you?**

KZ I don't agree but

BM Tell us why you don't agree.

KZ On June 3rd, I sent her a schedule of the assets. I begged for her engagement from the get-go and never did she engage a single time. I went to see her father in Morocco 7 or 8 times to do this with the least possible damage to the assets, she didn't mean it. She was foraging through my stuff, under my bed, she took a computer I gave to Lila Mae.

➤ **J Question was, were you by this document seeking to set the parameters?**

KZ No

➤ **J What were you trying to do?**

KZ I was trying to get engagement from her so we could do this with least amount of damage. I have never looked to hide my Coinbase assets, she had never connected Topanga to Coinbase, I am sorry.

Excerpt 3:

BM We are ranging off, I am trying to draw you back to May 2021. I will put things to you, and you can say whether you agree. **You thought Nadia suffered from PTSD didn't you, you told her solicitors that and other people?**

KZ I told them 17 Feb 2022. We left, I lived with her from March 13 in London to June to the US. She asked me to look for apartments in LA, then we bought the house in Wyoming and borrowed 5.98 million dollars, I asked her not to get divorced.

➤ **J Did you say Nadia had PTSD?**

KZ You received letter on July 12, NZ said she had PTSD this is, I wanted to clarify.

BM Your presentation was that Nadia is a vulnerable person who can be taken advantage of.

KZ No, they were ordered to do several things she had to follow through and by November 17 2022 reinstated orders, copying in Ms. Knight. I did what my previous solicitors did because they had done nothing. I am explaining why I wrote this letter to Burgess Mee. I wrote that to him because I was despairing, we were spending so much money, and she had borrowed 280,000.

It was exacerbating her situation, I explained she had PTSD.

BM At the time you sent this email on 17th May 2021, you knew that Coinbase had floated and your holding was worth 7 and half million.

KZ Yes, but less than

BM Worth several millions of dollars, you knew that and didn't point it out to Nadia

KZ Yes

BM You didn't produce it in any schedule, you forwarded her a schedule which didn't even reference Topanga

KZ Yes

BM You told her she shouldn't discuss this or take this to her lawyers

KZ Yes

BM If she would have gone along with this you would have bought her out of the Coinbase for \$358,000, this was exploitative and bad conduct.

KZ No, I was trying to get engagement. I have not misled. I always told her 50/50 with her.

BM Are you telling His Lordship that getting engagement from Nadia would happen by misleading her about the figures on the spreadsheet?

KZ I was trying to get any engagement from her, it's a precedent email. It was not feasible for her to agree with me without lawyers to get the contract. In 4 years, it was very difficult to get any resolution before FDR I was trying to minimise the cost, it was hard to make the money I make. All that money had gone to lawyers.

BM These proceedings had only been going on for a couple of months at the time of the letter.

KZ Out of context, for 26 years this was the fear of my life

BM You thought that engagement with Nadia would be helpful with the figures in the schedule

KZ No, the house in Wyoming the K1's everything was shared

BM Why was that attempt at engagement helped by **grossly inaccurate figures**?

KZ Engagement can be helped by figures that are going to help you

BM I understand. Is that an appropriate time to take a break?

Excerpt 4:

BM Tell the judge please, whether you thought on 15 March 2021 whether this was worth \$75,000.

KZ Until it is realised, it is \$75,000, until such time it is not worth more than \$75,000. That is what I have always believed in all private venture capital. Many friends in finance have this approach, be conservative until the investment is realisable.

BM **I am putting to you that is a dishonest presentation.** 866 please.

➤ **J bathroom break**

Ground 18: Judge's finding that Coinbase is a "late disclosure", not a "non-disclosure" is defective, and his reasoning is irrelevant to the matter.

I would like to clarify once and for all the matter of private asset valuations.

I will address the other non-disclosures in the skeleton argument or at the hearing.

The respondent's case is that he made an investment of \$75,000 in Topanga/Coinbase in 2015 and on 14 April 2021, the company went public, and his investment became \$7.5m.

Between 2015 and 2021, it's a valuation black hole and the respondent asserts:

KZ “Until it is realised, it is \$75,000, until such time it is not worth more than \$75,000. That is what I have always believed in all private venture capital. Many friends in finance have this approach, be conservative until the investment is realizable”.

This is the most revolting lie I have ever heard, and once again, the respondent is taking the court for fools.

The judge’s reasoning is irrelevant to the matter of Coinbase disclosure and valuation

The judge’s reasoning and his findings of facts focused on what I knew, how much I knew, and when I knew it. It is completely irrelevant and misguided.

The Courts have been clear for years, that making financial disclosure is not to be seen as some sort of a parlour game where you leave it to the other side to guess the omissions.

See Nicholas Mostyn QC (as he then was) in *GW v RW* [2003] EWHC 611 (emphasis added)

“16. In my judgment it was a mistake for H to have presented his assets in his Form E in the way that he did. He accepted that the representation that he was only worth £3.6m was unfair. The very point of Form E is to give an honest and conscientious estimation of the true net worth of the party at the time of swearing it.

For these purposes sensible and fair figures have to be attributed to unrealisable or deferred assets. The maker of the Form E is fully entitled to qualify those figures in the narrative part of the section. But a proper figure has to be put in. It is unacceptable, in my view, that simply because an asset is not realisable on the day that the Form E is sworn, but is assuredly realisable, or likely to be realisable, at some future date, for a zero figure to be inserted.

17. Moreover, when a person's financial affairs are complicated it is incumbent on him, as part of the duty of full, frank and clear disclosure to give a presentation that is immediately understandable by a solicitor of average financial sophistication. It is no good to present very complex material in such a way that only an accountant of enormous financial acumen can understand it....”

Taking me out of this picture, it leaves us with how much was his Coinbase investment worth. The answer of course is not \$75,000.

Every financial asset has a value. The neighbourhood's dry-cleaning business is a going concern and has a value. The accountants calculate the value in the company annual accounts and the neighbourhood bank can extend credit facilities on the basis of the value of the business.

Every single private asset, private equity, venture capital, alternative asset, fund, every single asset class can be valued in accordance with rigorous financial principles.

Valuation methodologies for private equity and venture capital are set forth and regulated by the **International Private Equity and Valuation board** (IPEV) and involve assessing investments in accordance with relevant accounting standards and best practice principles, specifically the International Private Equity and Venture Capital Valuation Guidelines (December 2018) ("IPEV Guidelines"), which requires that investments be valued at fair value. The determination of fair value requires judgement and is based on market information, where such information is available and appropriate.

The [IPEV website](#) can be accessed here.

Equity Investments, for which observable data is available (quoted prices) but for which there is no active market, will initially be held at historical cost, with the price reflecting the Fair Value of the investment in the market. Any observable prices will be considered in conjunction with other valuation techniques and data including:

- financial condition of the investee company
- operating results of the investee company

Subsequent Investments

Where there has been any recent Investment in the Investee Company, the price of that Investment will provide a basis for **recalibrating inputs to the valuation model** in order to reflect the Price of Recent Investment (PRI) accordingly. Consideration will be given to events that have occurred between the PRI date and measurement date.

Coinbase had raised \$1.9Bn in funding over 20 rounds. **Each round provided a basis for recalibrating inputs to the valuation model.**

There is no extra work involved for the respondent and his Wall St friends. The company has a duty to provide these calibrated Fair Market Valuations at regular intervals.

It is completely irrelevant whether my brother, my grand-mother, or Sylvie Ouziel knew about the investment.

It is the duty of the respondent to report the Fair Market Value of his Coinbase FF investment in his Form E, and the value is not that of the historical investment back in 2015.

It is astounding how the respondent can lie to the court and to the judge with a straight face about fundamental valuation analysis of financial assets. These are rigorous financial principles and valuation methodologies which are known to all market participants, including the respondent and his “Wall Street friends”. His dishonesty and how much he lies to mislead the court are evidence of a very troubling lack of morals.

I hope this puts the matter to bed once and for all.

Coinbase is a \$7.5m dishonest and devious non-disclosure and the respondent is a liar.

I will address all other non-disclosures when I have legal assistance and participation measures to make a proper appeal.

Toolkit 13: Vulnerable witnesses and parties in the family courts

The Family Procedure Rules

The Family Procedure Rules (FPR) 2010 set out the overriding objective (rule 1.1 (1)): the court must deal with cases ‘justly, having regard to any welfare issues involved’. This includes the requirement for courts to take reasonable steps to ensure the effective participation of vulnerable witnesses. The Family Courts are not limited by usual courtroom procedures/traditional special measures. Rule 4.1 FPR provides the Family Court with wide-ranging and flexible powers of case management, including the power to ‘take any other step or make any other order for the purpose of managing the case and furthering the overriding objective’. Early identification and notification are essential when a witness or party is identified as being vulnerable such that their ability to effectively participate in the hearing is compromised. Practitioners should ensure that

the Family Court is notified at the earliest opportunity so that it can consider what, if any, adjustments should be made to ensure that hearings are fair.

FPR 3A, PD3AA and the revised PD 12J set out considerations to assist the court in identification of vulnerable parties or witnesses and provides for measures that may be put in place once vulnerability has been identified.

The rules set out the duty of the Court to consider the vulnerability of a party or of a witness in three respects:

1. Whether a party or witness' participation in the proceedings will be diminished by reason of vulnerability or a witness is vulnerable (FPR 3A.3);
2. How a vulnerable party or witness will participate in the proceedings (FPR 3A.4); and
3. How a vulnerable party or witness can give evidence (FPR 3A.5).

The rules do not define vulnerability, but instead set out a list of considerations which are to be taken into account when considering the vulnerability of a party or witness. They are contained at **FPR 3A.7 (a)-(j) and (m)** ("the 3A.7 factors") as mentioned above.

Practice Direction 3AA paragraph 2.1 provides further elucidation of issues arising in the proceedings which might be relevant to paragraph (d) above:

- **Domestic abuse, within the meaning given in Practice Direction 12J;**
- Sexual abuse.
- Physical and **emotional abuse.**
- Racial and/or cultural abuse or discrimination;
- Forced marriage or so called "honour based violence";
- Female genital or other physical mutilation;
- Abuse or discrimination based on gender or sexual orientation; and
- Human trafficking

The Court should invite the parties in the case to assist the Court when considering whether the 3A.7 factors may mean that the ability of a party or witness to participate in the case is likely to

be diminished by reason of vulnerability. When considering this question, the Court should consider the ability of the party or witness to:

- Understand the proceedings, and their role in them, when in court.
- Put their views to the court.
- Instruct their representatives before, during and after the hearing; and
- Attend the hearing without significant distress.

In the event that the court decides that a party or witness is vulnerable applying the **3A.7 factors**, it must move on to decide whether to make participation directions. Participation directions are defined as being either (a) general case management directions made for the purposes of assisting a witness or party to **give evidence or participate in proceedings**; or (b) a direction that a witness or party should have the assistance of one or more measures in **FPR 3A.8**.

The measures set out in FPR 3A.8 are:

- prevent a party or witness from seeing another party or witness.
- allow a party or witness to participate in hearings and give evidence by live link.
- provide for a party or witness to use a device to help communicate.
- provide for a party or witness to participate in proceedings with the assistance of an intermediary.
- provide for a party or witness to be questioned in court with the assistance of an intermediary; or
- do anything else which is set out in Practice Direction 3AA.

Where the Court concludes that a vulnerable party or witness should give evidence, the court must hold a ground rule hearing prior to any hearing where evidence is to be heard.

The court's duties under this rule apply as soon as possible after the start of proceedings and continue until their conclusion (FPR 3A.9). Any directions made pursuant to this rule may be made upon **application (FPR 3A.10) or by the Court of its own motion (FPR 3A.11).**

These comprehensive provisions are of fundamental importance to the administration of family justice. As paragraph 1.3 of practice direction 3AA makes clear, the court's duty to identify any

party or witness who is a vulnerable person arises not only under the express provisions in Part 3A of the FPR but also under the overriding objective provisions in Part 1. The duty is to identify such persons “**at the earliest possible stage**”, an obligation reinforced in proceedings under Part IV of the Children Act by the requirement in the Public Law Outline in Practice Direction 12A to consider the need for directions as to special measures and intermediaries at the initial case management hearing.

It is equally clear that the duty to identify any party or witness who is a vulnerable person, and to assist the court to ensure that each party or witness can participate in proceedings without the quality of their evidence being diminished, extends to all parties to the proceedings and their representatives. It will almost invariably be one of the parties or their representatives, rather than the court, who first identifies that a party or witness is or may be vulnerable. Good practice requires the parties’ representatives to actively address the question of whether a party is vulnerable at the outset of care proceedings. In order to comply with the obligation under **rule 3A.9**, the judge conducting the case management hearing at the start of care proceedings should as a matter of course investigate whether there are, or may be, issues engaging Part 3A of the rules and that the parties’ advocates should as far as practicable be in a position to respond. **Furthermore, rule 3A.9 stipulates that the court’s duty continues to the end of the proceedings.**

Ground rules hearings (GRH)

The requirement to hold a GRH is now contained in FPR PD3AA para 5.2.

The purpose of GRHs is to establish how someone who has communication needs, or is otherwise a vulnerable person, should be enabled to give their best evidence or otherwise participate in the trial. The GRH should discuss the contents of the report of any intermediary or expert witness instructed in the case.

GRHs will be necessary when the Court has decided that a vulnerable party, vulnerable witness or protected party should give evidence in proceedings.

Courts must make reasonable adjustments to remove barriers for people with disabilities, including autism (**Fairness in Courts and Tribunals, Judicial College, 2012, giving effect to the Equality Act 2010**) and incorporating the **Autism Act 2009** principles. In order to consider a range of adjustments it is important to have staff with the relevant expertise and experience.

Adjustments must be made on the basis that they are, where possible, less restrictive of the person's rights (section 20.33 of the Mental Health Act Code of Practice consultation document (Local Government and Care Partnership Directorate 2014)). The Criminal Procedure Rules govern the nature of the reasonable adjustments and are required to meet both the Autism Act 2009 and the European Convention on Human Rights legislation on such vulnerable defendants and witnesses within UK Law.

Day 2: Wednesday 21 February 2024

Court resumed at 11:40am

BM: Before NZ starts, I would take her to each of the sworn statements. In terms of housekeeping, I would suggest this is agreed to your approval, Rosie to assist with the bundles.

NZ takes the stand

BM: NZ you cannot take notes, you can take blank paper to write things down

NZ: If I want to refer to page numbers. NZ takes the religious oath.

BM: Tell the court your full name and address

NZ: confirms her name and address at 3093 Teton Village.

BM: You have produced a number of statements and affidavits; those are already in evidence. The procedure now is that you will be asked questions with AC, there are a number of questions about Karim's s25 statement. There was a suggestion in KZ s25 there was an affair with Professor S., is that true?

NZ: No

BM: Rosie will be assisting you with the page numbers in the bundle, I am now handing over to AC

AC: Mrs Zahmoul, sure you understand that one of the first things the judge needs to do is to understand what assets there are.

➤ **J : You need to listen wherever you look, and listen carefully to AC**

AC: Is it your case that the assets are at least 141 million?

NZ: The nature of crypto

➤ **J: You need to listen to the question and answer what is being asked.**

NZ : Where is the computation behind these taxes?

➤ **J : Counsel asks the question and you answer – you say you are much more apart, why?**

NZ: Can we please get the order of 10 July 2022

➤ **J: If you keep interrupting it will not help, if you answer the question that will help**

AC: You didn't agree?

NZ : No

➤ **J : What were you unhappy about?**

NZ: The returns and the computations by the CPA are false, as a result of the misrepresentations there is something called a recourse loan which is also not correct, it puts me at risk, the respondent has represented that he is a US citizen he is not, and said I am UK citizen which I am not. Gives him right to open a mortgage, open an account close an account and everything, He is not a US resident, it is relevant. He doesn't pass the residency test.

➤ **J: I understand, thank you.**

AC: Other properties are owned by LLC with you and KZ, is that true?

NZ Exactly the same as the 4 million, he liquidated and sent to the Bank of Jackson Hole, if he wanted 50/50 he would have split the liquidated, he put himself as the only guarantor.

➤ **J I understand, I have your point**

NZ I have very limited funds, I cannot pay people when they are gaslighting, my CPA asked many times for the information which is not here, they overrode my CPA

➤ **J Is your answer that you sent that email asking him not to engage because you had no money to pay your CPA?**

NZ No

➤ **J Do you agree just before March 2023 you had instructed Jeff not to engage?**

NZ I instructed him not to engage

➤ **J Why?**

NZ When someone pretends not to understand you, what is the point of carrying on, they were ignoring him for 3 years, I cannot keep answering when they are ignoring.

NZ The memo of my CPA on the impact of the tax position.

➤ **J Let's start at the beginning, do you accept they can be shared?**

NZ Answer is on august 10th 2021, there is a liability I forgot the name.

➤ **J Are they shareable**

NZ Yes, with tax consequences

NZ The memo is giving an over theoretical answer, and it is deficient. I bring your attention to the deficiency, it is saying if you were to transfer assets outside of Portugal at 4242, a mere transfer of assets is not transferable in Portugal. If you go to the asset schedule of the respondent, he has put taxes everywhere, why.

➤ **J Why is the memo deficient?**

NZ It is not consistent with how it has been applied to the asset schedule, it says if one gets more than the other, this becomes a taxable event in Portugal.

NZ These questions are theoretical

➤ **J Pause, I think I can take notice of that fact. NZ has been in the witness box for some time, there will be some time to go. Break for lunch.**

Hearing pause at 12:56pm

Back in at 2pm

NZ I see in specie, but not subject to. When was it sent to me? You are talking about Asden, no date on first page, what document?

➤ **J The document you have got there**

AC I am told its dated 1 April 2022, it doesn't matter except that your solicitors were sent it, they responded. This document was sent 2 April 2022. What I am trying to do is identify a timeline,

unfortunately the important person who needs to understand the document and the timeline is the judge

- **J I need to come to a considered decision at the end of this trial, I need to understand for myself what you live and breathe. I need you to listen to the questions asked and answer. I need you to listen carefully and answer.**

NZ Your lordship, he had already moved them since April.

- **J Did you obey the order or not, or 12th of June**

NZ Zoe can you find out when the respondent told you.

- **J I understand this is difficult and there is a huge amount of information about the case, lets concentrate on the questions**

NZ Did I obey the court order to respond to advice I had not read, and the respondent had already unilaterally moved it by September 7, he already moved it.

NZ Your lordship, she is asking me my view on the taxes

- **J Question is would it not have been simpler if Karim had put his opinion on taxes on paper and then you put your opinion on paper?**

NZ 1 you are duplicating costs there we would not agree and 2 do we even know whether the respondent has a detailed tax position, it would have probably been a solution, but that would not guarantee a solution.

AC Bundle at 388

- **J You alright?**

NZ Yes, yes

AC Do you see paragraph 10, 1 March 2023, he ordered you to provide the following disclosure, evidence of any moneys borrowed which has not so far been disclosed. You had never provided evidence, but you said your father had leant you money.

- **J 14:40 – short break, lawyers will tell me when to go back.**

14:51 – court resumed

AC Page 223, paragraph 6 you were ordered to provide your health insurance policy called Cigna, you were asked to ask Cigna to reinstate Mr Zahmoul as a parent with authority, you were asked to provide a breakdown of claims, you have been asked on 4 occasions and you have refused to comply?

NZ Yes, I agree

AC Do you think its okay to not comply with the orders?

NZ Absolutely not, this is a big one your lordship

- **J I know it's a big one, I understand this, and I am going to ask AC to move past it**

NZ No I have not. These watches, there is nothing that says they belong to KZ, they are joint matrimonial assets, the watches why are we making a big fuss. I didn't have a choice. I had applied for the LSPO, I received a unilateral email on 2 May, I went to zero on May 2nd on my daughter's birthday, my landlord said I had to move by July 4th, thousands of pounds just to move, still had one daughter taking A-levels, math, French. My father sent £3,557 per month, goes to children. I would not have survived, my mother has Alzheimer, it is taking away money.

➤ **J Just pause, you are running away again**

➤ **J Are you saying the table in your section 25 that adds up to 38.2 million should replace the table at 3266?**

NZ Exactly, but we are missing the Barclays account, they are not in form E they were disclosed later so I consider them to be deficient disclosed investments. The onshore investments...

NZ Exactly, Mr Zahmoul made 4 million from Coinbase securities, he produced on 5 September 2022. He states he sold, remind me to go back to the Portuguese taxes, he states that 7 million became 1.4 million, the shares were at bank of New York Melon. These were Coinbase, they only trade on Nasdaq, when he produced the documentation evidencing the same, it is not a confirmation of sale, this was an indication of sale, if you sell you will get this price, from Sydney Australia.

AC Let's look at the document at 4142

➤ **J Are you okay?**

NZ Yes – At the top it says Australia, this is a lot of explanation, why is this from Australia? The bitcoin wallet, the Forte Securities is a wholesaler, they service hedge funds and broker dealers, Kassis was a senior person here was the boss of the respondent, in order to have a license he needs, respondent signed manual of compliance of forte, he is sponsored by forte. The respondent has a financial security company. This is very relevant.

AC Are you saying you don't believe this document is true?

NZ Not at all, you don't sell Nasdaq from Australia, someone who trades would not sell at that time

AC What do you think happened?

NZ He has not disclosed his relationship with Forte. If you do not want to sell stock, you can if you think a stock is going to go up, you can let other people borrow the stock, it looks like a sale.

➤ **J What do you say happened here?**

NZ The derivative desk of Forte is in Australia, I think someone borrowed the shares and Mr. Zahmoul sold them out and gets them back at a later date. Not a single reason why a Nasdaq share would be sold from the Australia desk, we next see shares from Forte Securities in London to Revolut London. Revolut is sending it to Revolut NY, then to Jackson. The denomination of Coinbase is US dollar, it goes from Sydney to London, to New York, to Denver. It does not make sense.

NZ \$2.4m is clean capital at end of 2018, it has paid taxes, it can be used in the UK without paying further taxes. They were meant to go this way, what I am saying, your lordship 4 sources of income are in 4 fiscal buckets.

➤ **J I understand**

➤ **J You may think you are making sense, but I am struggling to understand, so I am going to get AC to ask another question.**

AC para.26, figure of \$20.5 million dollars, UBS p. 3266 in the bundle, the figure you say for undisclosed holdings is £12.81 million pounds. I don't understand \$20 million in one, £12 million in another?

NZ The spending in the UK is covered, there are 3 offshore incomes, the UBS income, shares of liquidations and shares of Barclays and shares of the rentals in New York.

BM I do wonder if we have reached a point

NZ I want to make progress

➤ **J I am going to rely on you, we can continue for a little while**

AC I have quite a lot to go, if you feel she would benefit from a break.

➤ **J I have something else at 4:15 so we will rise them**

NZ Do you know why your client has two different tax advisors in the same place, has multiple people and can't produce proper numbers for the final hearing?

AC On 26 January, advisor filed a comprehensive reply, have you read this document NZ?

NZ Let me read it

➤ **J I am going to pause matters there. I am going to make sure you are in a position to give your best evidence so we will pause. You are not allowed to talk to anyone about your evidence, you cannot talk to Mr. Molyneux about your case, you can't talk to your solicitor about your case.**

➤ **J No. 10:30 tomorrow.**

Hearing ended 16:13pm

Day 3 - Thursday 22 February 2024

Hearing started at 10:32am

AC Before I continue before cross examination, at the bar we have reached a conclusion, Ms Zahmoul has given a lot of evidence. BM won't make any objection, if I make reference to the statement without putting each point to NZ because we would be here forever, not going to put any further points on the non-disclosure. Mr Zahmoul rejects her case on non-disclosure, I have gone through some questions with NZ and she has made her points.

➤ **J Sensible, thank you for having that discussion.**

NZ I was thinking yesterday, I am still piecing things together.

➤ **J When did you get access to Imerman?**

NZ End of March, Withers asked me to send copies.

AC That's when you delivered it up, when did you obtain the information?

NZ Not true, it took a subpoena and millions of pounds to find out that was false

➤ **J Can you listen for the question**

AC Page 1389. Back in 2018. This is an email Mr. Zahmoul sent you a list of updating assets, relates to real estates and then investments, can you see. Can you see reference to Coinbase, 75,000.

NZ Coinbase the private company had 17 rounds of investments, so when the respondent said he did not know the value of the investment, this is in opposition when a venture capital firm like Tiger Global he is saying he knows it is worth 8billion.

AC What is your wink for?

NZ I sent it because I didn't care

➤ **J I am trying to understand your case, I am trying to listen to the answers you are giving. If you do not listen to the question and try to answer I am not going to be able to understand your case. I want you to calm down and listen to the question.**

AC Why are you sending a good luck wink to him about the announcement that Coinbase was now worth 8 billion

NZ Because I have no words, it is good news for the market

AC I put it to you that you sent it because it was good news for your family, because you knew there was a 75,000 investment. Page 1394, you were arranging a mortgage, an email exchange to the bank.

➤ **J Look at the document**

AC Did you know about Coinbase?

NZ No, I did not

AC You were copied in the email. I am putting it to you

NZ Investment in Topanga also called Coinbase

AC You knew that he had made 75,000 in the company, different to the shares

NZ I do not agree.

➤ **J That is fine, I understand.**

NZ The respondent bought \$10,000 in bitcoins and a year later he divested. Mr. Dendi is the owner of the company, he texted him to buy back his costs, he said buy me back at cost. Mr. Dendi had

6 funding rounds in 1 year, on the day they did the transaction at \$10,000, the respondent's equity stake was valued at \$113,000. This is a fraud.

- **J Just stop. Part of my job is to write down your answers, at the moment I am not writing, as you are not answering the question you are being asked. You are not listening to the question. It makes it very difficult for me to listen and understand your case, I really need you to listen. Short break.**

11:42am break

12:03pm court resumed

- **J I should have made clearer, I have had the opportunity to read everything in the bundle. I have been involved for a long time, I know a lot about it, you don't need to give me the background. I know.**

NZ May I finish, the explanation on the Bitwyre was convoluted, it is called an undervalued transaction in the code of fraud. I simply asked to show the respondent had 1% of Bitwyre with 11 other people. I wanted evidence that he sought that 1%, evidence that he sold back his ownership. It is a private transaction; he is allowed to send something that is 100,000. This is a man who they would like to know he is regulated. In my opinion it is something notable, this is why I instructed my solicitors to write to the CEO.

- **J Okay. Have you got the page?**

NZ I understood that there was language in the order asking to open the account and I had made clear to all that I was not happy with an account open as on 4 October 2022, I received an email saying an account.

- **J I understand all that, just concentrate on the question.**

AC Mr. Zahmoul 'you spend over 5k a month...we are burning through the Barclays shares faster than anticipated'. You write 'I understand I will try not to do anything frivolous.' I read that as you saying you understand there is a bit of pressure on money, and you will try not to spend as much.

NZ Yes, this goes back to taxes, there is onshore and offshore.

- **J You explained all of that yesterday I don't need you to repeat, I understand.**

AC No, I think it's him to you. He is saying it will be 360 dollars, he is showing how much.

NZ \$360 thousand, using his salary to peg, which now he is doing with the rental in Wyoming, 104 is 2000 x 52. There is always pegging, there is always a budget and a plan. In 2018 he had Miss Molina, we are looking at a pegging right now. My future income is restricted by Wyoming, we never touched rental income, this is a box. I make 30 therefore budget is 360.

- **J I need you to concentrate on the questions, I can't write fast enough when you answer like this. The faster you talk, the more difficult it is to take a note. You need to listen to Miss Campbell.**

NZ The situation is.

➤ **J Let's just get to the question first**

AC 2995 please, sorry. This is a bill from GB liners in July 2023 from Hill Villa to Boston, for Jade.

NZ Correct

AC When you came to court and asked for the rent in London to be paid for by the respondent, you already knew you would be moving to Wyoming.

NZ When I came to court I would intend to move to London in September, my intention was to ship the belongings to donkey storage. I wanted to live in London until the end of the proceedings and decide what to do with my life. It shifted when I couldn't pay to move out of Hill Villa, I can't do anything without my own balance sheet, I will not accept to live in London without my own balance sheet.

➤ **J You have set it out for me**

NZ I didn't lie

AC When you booked the accommodation in Wyoming through to November, back in March and then you told the agent to keep it booked for you indefinitely

NZ Booking date in March

➤ **J I am satisfied I can see from the document. How long do we think we have left?**

AC Another hour, I may possibly be able to refine that. It would help me to narrow my questions if we had a slightly longer break. **I have no objection to NZ being supported if she needs that. If we came back at 2:30 or even 3 o'clock?**

➤ **J 2:45**

Hearing stop 12:50pm

Hearing Resumed 14:51pm

NZ False, not savings they were rental revenue, they were sitting there. 2 at the FDA Judge Cope asked that that account, my assets at the beginning were \$350 at Fidelity were savings from Lehman brothers, started off at Withers, joint account at BOJH was frozen. Maintenance of the homes.

➤ **J I get that**

NZ When we ask for my legal fees, the respondent could close the balance sheet. When we asked for access to the joint funds for my legal fees, the answer was no. They would not agree to give me permission, but I could apply for variation when needed.

➤ **J Rather than the whole history, just listen to the question.**

AC 1839.

NZ I appeared in person on 1 March 2023, I am not sure I filed a form H.

➤ **J Did you increase the loan by £40,000?**

NZ The £40,000 was ringfenced to apply for an LSPO. I signed a contract that it was only for the LSPO.

➤ **J Did you tell his lawyers or him about this?**

NZ No, Mr. Zahmoul said that he represented himself so I didn't converse with him, I would not have sent an email to him no.

AC Now at 2572, this is a document who shows who the author of the document and it was David Lilywhite

NZ Correct

AC You were filing documents by solicitors who were assisting you

NZ This was a template sent to me by Burgess Mee, they provided the template to me. They sent me a draft and I didn't use it

➤ **J AC, I am aware, if someone takes a Microsoft Word document and uses it in another case for another order, it can look like counsel drafted it.**

NZ The first time I sent it I didn't have the D11 form, I needed a template

AC I am getting on to ask about Mr. Zahmoul watches

NZ Your lordship, do you have any questions on legal fees?

➤ **J No**

BM There was a list of chattels you were taken through, what are you saying should happen to those for the avoidance of doubt?

➤ **J If you seek to adduce the evidence in the witness box, or put on record what your client's position is, you can but I'm not sure about resolve it**

BM His personal possessions in your possession, would you have any objection to Mr. Zahmoul having those returned to him

NZ No

➤ **J I have no other questions, I am grateful. I am going to release you from your oath and let you go back to your seat.**

Hearing ends 15:36pm

Day 4 – Friday 23rd February 2024

15:38pm

BM 1676 please. A couple of things by way of explanation, what the assets are and how we got to where we got to, with such a difference in presentation between what Nadia thinks the asset base is. In amongst over criticisms of Nadia, you wrote this to Burgess Mee. You say '**lastly I am enclosing a list of books over the years ..during therapy period...believed Nadia had borderline personality disorder and PTSD...not to expose Nadia but make you aware of your actions, take advantage of someone who is may not be well**' Nadia sees this as being characteristic of what some men do to women, to tell them they are unwell to undermine them, she thinks this is what you were doing with her solicitors, that is a fair criticism isn't it?

KZ Its a spin, not a criticism. I have done since beginning of Nadia serving me, this has been written, we have been in proceedings for 1051 days since FDA. This was done after so many attempts of reaching out to Nadia, my first email to miss Bloom to offer any explanation with any expert and nobody was engaging. I was articulating what I was experiencing in earnest. We bought a house together Wyoming joint. I should have said you take one house I take the other, I wrote an email on June 3rd explaining what had happened to our assets, she gave court origami to our friends she didn't want to engage.

➤ **J As I understand it, this email was written to progress things**

KZ Yes

BM Do you regret writing it in those terms, was it helpful to write?

KZ I thought it when I wrote it, similar to her when she write, I am not a Russian oligarch, I worked hard for my money, If I offended I am sorry. I pleaded around that time for her to be rational. I wrote to her Mackenzie friend Monica McGregor, she is a forensic expert, I asked her to ask any question she wanted, I was despairing she didn't respond.

BM I am going to be explaining to His Lordship it is a case in which every action has an equal and opposite reaction. **You reference your belief that Nadia suffers from PTSD, if you look at 2164, there is a letter from Professor Libby that you exhibit to one of your statements.** This is a letter you exhibit to your statement, you were relying on it, 12 July 2022. '**I write in some urgency...I understand you are acting for her in divorce proceedings...I am treating symptoms of PTSD**' keep that in mind, look at 477. Hearing In June 2023. One of the advantages of you having acted in person, your words are not said through medium of a barrister, you speak your words 'don't

believe there is liquidity...**she suffers from PTSD...this is reminiscent of 2014' I want to put to you that you present as if this PTSD is sprung on you as a device, you knew Nadia is someone who had been unwell and the proceedings would trigger her.**

KZ Fair thing to say, some context, letter is 12 July, remember when that was, day we had a mediation session. Then the next day you made an appeal on the Cigna policy, an appeal, when you had the letter, at the time this letter was available on July 13th, you decided to use compassionate grounds to get judge cope to overturn her order, to give me access as a father to my children medical proceedings, they were rightly mine, that is what I was trying to say.

BM **Nadia you know is someone who values transparency and feels the need not to be misled or feel that things are being hidden from her, these proceedings particularly in relation to Topanga have triggered her and made it hard for her to believe anything said.**

KZ The reason I didn't want to get divorced and purchased a house on the basis we were not going to get divorced, and October 2021 she sent me a letter to postpone everything 1 year or this is a form E and you have 1 month to put it together. **Of course it increases her PTSD, but I didn't do this, I was trying to stop this occurring, we renewed the vows, I stayed with her, I wanted to maintain her assets. I didn't want to get divorced; I don't deal well with ultimatums and that is how I reacted.**

BM **A fair summary is that Nadia is someone who deals badly with being misled but you don't feel you are someone who misled her**

KZ Yes

➤ **J Cannot talk to anyone about the case**

KZ Can be on my computer, looking at the statements.

➤ **J Yes, the embargo is not to talk to anyone. Tomorrow at 10:30.**

Hearing paused at 16:14

23 February 2024

KZ I would be glad, can I check what table? When he forgot to produce it the account in 2020 and 2021 was the account he says there is nothing from this, it was an innocent omission. NZ failed to disclose...it is criminal

BM You are going off piste. It is not a debate; I ask the questions. You have confirmed you will produce the accounts table.

KZ I will ask my accountant to produce, I am not sure what you are asking

- **J This will take a lot longer if you try and jump in over the question, you need to wait for the question.**

BM So we are clear, your accountant says there is an obligation to produce a table of bank accounts to be cross reference with international obligations

AC I will get the exact description and pass it on

KZ I would like the clarify something yesterday

- **J Clarification comes at re-examination, your leading counsel can ask any questions**

KZ Can I speak to her, I am not allowed to.

BM I think you did, at 1343 this is what you said subsequently. There you do accept, that you should have stated on your form E that there were discussions/plans for a Coinbase direct listing. TCH was a vehicle for Coinbase shares. That fact you should have said, shows that you knew about the forthcoming listing.

KZ Doesn't mean that

BM Explain?

- **J Answer the question**

KZ My father passed away, I got letters form Withers on January 21 2021, find the page in the bundle with Diana Parker threatened me we have to go to court. Nadia wants the UK to stay as the jurisdiction, 28 January I responded. I had other things on my mind, my father's inheritance and looking after my sisters. I had to get ready, find a lawyer. I was not allowed to spend much time in the UK, I knew this deadline was coming for my pension, that's why I rented the apartment in early February in Cascais, I left in...I was dealing with the form E with Andrew Gannon, I decided to leave Tunisia with my sister and went and isolated in Morrocco. I hired Stewarts law firm. I switched to HFC on the advice of the wife of Stebbing that Nadia had an affair with. I had lots of things on my mind.

- **J I am in charge of this court room, when I speak, you listen. We'll rise for a short break.**

12:09.

12:21

KZ You think I was focused on Coinbase, my father had passed away, family falling apart if that is what you think, then fine.

➤ **J Being petulant in your answers is not going to help me, what is being put to you is that you knew, did you know or not?**

KZ Did I know about Coinbase, potentially. I knew that things had happened in the past, many things can happen, I am superstitious I didn't want to assume things, same thing as I know Coinbase 15 million euros. I don't have access to my shares I don't have access to Topanga canyon, my friend Mike Deeg when we invested in Coinbase we never spoke to them or had feedback, tried to get updates from Steve Jones but we weren't getting them, wasn't 100% sure

BM Nobody is taking that point, so I am going to press on 'please advise what else you need...' you enclose the asset schedule prepared before by Mr Ray. Top of that page, split of the number titled 'in case you are serious' you continue, clearly all the numbers have changed, the bank accounts can split 50/50..pension we should split...tax consequences, let me know when...if this goes to lawyers' **I am going to be saying this is one of the most important pages in the 4000, you are setting the parameters for a negotiation aren't you?**

KZ I don't agree but

BM Tell us why you don't agree.

KZ On June 3rd, I sent her a schedule of the assets. I begged for her engagement from the get-go and never did she engage a single time. I went to see her father in Morocco 7 or 8 times to do this with the least possible damage to the assets, she didn't mean it. She was foraging through my stuff, under my bed, she took a computer I gave to Lila Mae.

➤ **J Question was, were you by this document seeking to set the parameters?**

KZ No

➤ **J What were you trying to do?**

KZ I was trying to get engagement from her so we could do this with least amount of damage. I have never looked to hide my Coinbase assets, she had never connected Topanga to Coinbase, I am sorry.

BM 1807, you reference Coinbase there, but its crypto currency, Coinbase and crypto were interchangeable terms, you didn't explain that it meant Coinbase.

KZ On June 3rd I admitted on Topanga Canyon, I said it's not working, go to St Barts and get divorced in a civil way. On a June 3rd 2020 I wanted it civil, she took pictures of Olivia and showed them to my daughters. She never asked questions about the spreadsheet. In November 2021 my friends sent her the spreadsheet she did not engage.

BM We are ranging off, I am trying to draw you back to May 2021. I will put things to you, and you can say whether you agree. **You thought Nadia suffered from PTSD didn't you, you told her solicitors that and other people?**

KZ I told them 17 Feb 2022. We left, I lived with her from March 13 in London to June to the US. She asked me to look for apartments in LA, then we bought the house in Wyoming and borrowed 5.98 million dollars, I asked her not to get divorced.

➤ **J Did you say Nadia had PTSD?**

KZ You received letter on July 12, NZ said she had PTSD this is, I wanted to clarify.

BM Your presentation was that Nadia is a vulnerable person who can be taken advantage of.

KZ No, they were ordered to do several things she had to follow through and by November 17 2022 reinstated orders, copying in Ms. Knight. I did what my previous solicitors did because they had done nothing. I am explaining why I wrote this letter to Burgess Mee. I wrote that to him because I was despairing, we were spending so much money, and she had borrowed 280,000.

It was exacerbating her situation, I explained she had PTSD.

BM At the time you sent this email on 17th May 2021, you knew that Coinbase had floated and your holding was worth 7 and half million.

KZ Yes, but less than

BM Worth several millions of dollars, you knew that and didn't point it out to Nadia

KZ Yes

BM You didn't produce it in any schedule, you forwarded her a schedule which didn't even reference Topanga

KZ Yes

BM You told her she shouldn't discuss this or take this to her lawyers

KZ Yes

BM If she would have gone along with this you would have bought her out of the Coinbase for \$358,000, this was exploitative and bad conduct.

KZ No, I was trying to get engagement. I have not misled. I always told her 50/50 with her.

BM Are you telling His Lordship that getting engagement from Nadia would happen by misleading her about the figures on the spreadsheet?

KZ I was trying to get any engagement from her, it's a precedent email. It was not feasible for her to agree with me without lawyers to get the contract. In 4 years, it was very difficult to get any resolution before FDR I was trying to minimise the cost, it was hard to make the money I make. All that money had gone to lawyers.

BM These proceedings had only been going on for a couple of months at the time of the letter.

KZ Out of context, for 26 years this was the fear of my life

BM You thought that engagement with Nadia would be helpful with the figures in the schedule

KZ No, the house in Wyoming the K1's everything was shared

BM Why was that attempt at engagement helped by grossly inaccurate figures?

KZ Engagement can be helped by figures that are going to help you

BM I understand. Is that an appropriate time to take a break?

➤ J Yes

13:02

14:02pm Hearing resumed

BM This is a run of correspondence following you attempting to mediate, with inaccurate figures where she has been saying all along she doesn't trust your disclosure. You have now disclosed upwards of 7 million, your solicitors response 'no basis for these allegations have been offered' Nadia sees this as gaslighting, people telling her something that she can see is obviously wrong. Do you agree?

KZ No, I don't agree with you, you have to have the benefit of reading all the letters. Judge Cope served the costs order, again she penalised Nadia, from the get go she was looking to harm before Coinbase.

BM 1343, paragraph 25 'I approached the form E literally...

'[BM reading] literalist approach you are touching on there. The value of your other private equity unquoted invested is explained and qualified in your Form E. 175 please. I am going to be saying to the judge this literalist approach only seems to apply to Topanga, you'll see the Panama company 'the company owns squatting rights...[BM reading the written qualification] 753, Hydra Ltd, you say [BM reading] 753 again, top of 754, 100 euro ordinary shares. 'this reflects what I paid for the shares in 2020 and remains my view of current value' you were with all these shares able to come up with an estimate of the current value, for all except to Topanga. It doesn't stack up.

KZ Don't agree, didn't have much information from Topanga, it was done in 4 weeks 3 weeks. Route IA was not there, nothing there, Bitwyre,

BM Mr. Zahmoul, where you looked at these and you had some view on value, you tried your best to attribute a value to the other equity interests. This only really applies to Topanga, why is that?

KZ Not correct, I have announced I just put the initial numbers

BM You say 'this reflects what I paid in 2020' you applied a critical eye to come up with a figure.

KZ No, it was a recent investments.

BM 1384. July 2020. Running into Steve at a party, someone who introduced you and Mike Deeg to Topanga investment. [BM reading exchange] you say 'better not be' because you knew this was a very valuable investment in underlying Coinbase didn't you?

KZ No, I didn't know that. There was a few emails over the years. We didn't get an update one time on this, not like venture capital every six months where you receive an update every 6 months. This investment I mentioned in May 7th statement. Maybe it wasn't a serious investment

BM Your sworn evidence is your best estimate to March 2021 was \$75,000.

KZ Ok, I explained this in my May 17th statement.

BM Tell the judge please, whether you thought on 15 March 2021 whether this was worth \$75,000.

KZ Until it is realised, it is \$75,000, until such time it is not worth more than \$75,000. That is what I have always believed in all private venture capital. Many friends in finance have this approach, be conservative until the investment is realisable.

BM **I am putting to you that is a dishonest presentation.** 866 please.

➤ **J 14:35 bathroom break**

14:43 hearing recommenced

KZ No, I don't agree with you, you have to have the benefit of reading all the letters. Judge Cope served the costs order, again she penalised Nadia, from the get-go she was looking to harm before Coinbase.

BM Tainted money will come back to bite the two of you in the future. NZ believes that Olivia Molina was a prostitute, was she?

KZ no

BM She ran prostitutes, escorts?

KZ No

BM What did she do

KZ She is an influencer, she organises people for events and promotions

BM She arranged prostitutes for Phil Jenkins

KZ No

AC Not been in the conduct pleadings

BM This goes to my clients worry that tainted money going through miss Molina's hands

➤ **J I am not going to make the finding that someone is a prostitute**

BM 1855, paragraph 162. 1440, financial assistance with Miss Molina

13:02 – back at 2pm

KZ I was trying to protect our assets, this bank has leant me the most money in my life, now they won't talk to me.

BM 1650. Email from you to Nadia, saying how much you have spent 'to save on legal fees. I have decided to self-represent myself' one of the things you say you should be given credit for is that you saved money by being self-represented, but you were receiving advice from Camilla Baldwin. From the moment Nadia took out the litigation loan a consequence of that was that she had to be represented.

At 1650 you misrepresent your reason for paying the mortgage, you say here in contrast to what you have said today 'given the massive increase in interest rates and collapse of British pound...as a result I have taken steps to pay as much of the properties as possible' You then explain how has that was achieved. Reason you were doing this was to put maximum pressure on Nadia and you didn't want her to be represented.

KZ May I answer

➤ **J I understand your case about how hard you have tried to engage**

BM 3017 please. One final thing on 1651, three paragraphs up from the bottom [BM reading] 'steady stream of cashflows, I will soon no longer be able to pay you 2000 per week' **you were saying there was a risk you would reduce the amount you were paying, wasn't this you trying to put Nadia under intolerable pressure in these proceedings?**

KZ Don't understand what you are saying. I was suggesting that we had no more capital, and we had the income from the property to meet our needs, the debt was repaid, we would get the same amount of money we were going to get at the time.

BM That was the autumn of 2022. 3107 please.

KZ I am not as witty as BM, I am happy to come back tomorrow I don't want to rush and make mistakes.

➤ **J I understand, however the court has other cases**

BM 3017. We have seen what's happened, your discussions with BOJH, paying down the mortgage for the reasons you say 'Xappo funds used most of them to reduce the mortgage' you were doing this weren't you to make it as hard as possible for Nadia to make LSPO and MPS application, that was your motivation when you found this money you didn't even know existed.

KZ It is difficult to sustain a mortgage in US, she decided to litigate with the bank, the bank asked us to pay 100 [x] dollars a month, I don't want to be left with the bank foreclosing and forced to sell our assets.

BM Where you had indicated that it would be hard for you to continue paying maintenance, and there were live issues as to how Nadia would fund her legal fees, when you found this '**forgotten**' money you decided to pay down the mortgage and reduce the liquidity

BM 2865 [BM reading] 'the assets currently frozen, insufficient assets' isn't that your solicitors acknowledging a problem that was entirely your making?

KZ Not at all, this came after the ex parte application, this was the meeting of the 29th of Mr. MacDonald, the judgment of 6th July, Mr. sent a document to the court that had 17 errors, the third item was the Penn mutual policy. In the judgment it was stated I had ample liquidity, I should have appealed the judgement, and this letter was to address exactly that point.

BM We looked a moment ago at your letter of Autumn 2022 when you say you were self-representing, look at 3161 please. At the same time NZ was telling you she was concerned how she would meet litigation costs, you were selling marital resources to fund your own legal costs

KZ October 2022 I was in Wyoming, I was tempering with the idea of self-representing, I was put onto Camilla Baldwin.

BM Can I recast, 3161, 'Karim has made false representations about being self-represented...since 2022 I have had no shadow representation' You were represented by Camilla Baldwin during that time' focus on the first bit, what is incorrect about what Nadia says there?

KZ She says I am represented on 17 November, I have not paid Camilla Baldwin between that and the LSPO, a negative sum, its Camilla paying me back what she owes me, I was getting money back, I had overpaid her and I was not using her. There was a judgment...

BM I can see the judge nodding, will move on

BM Have you rectified the tax returns, there was a number of errors

KZ 2022 were done, they were fixed. 2022 was done the way Nadia wants it done. 2020/2021 was sent by Zack in august, Zack said would you like us to refile and there has been no engagement

BM Meant to be uncontroversial

KZ 2022 has been filed correctly

BM It's with the IRS now

KZ Yes, done the work, sent it to her and get nothing back. 2022 have been filed, 2020 and 2021 are in the way she says are false, the entities which fed into the personal tax return, mine is a non-personal tax return, it is not relevant from a tax perspective. 2022 has been filed the way she wants.

BM 2022 has been filed, 2020 and 2021 haven't been filed?

KZ Rectifying them exposed things to reinvestigation. We sent them to Jeff for approval, we have had nothing back

BM The position is that nothing in any of these returns would be relied upon by you to thwart any order made

KZ No, they are returns

BM Those returns misrepresent the partnership returns

KZ No not correct; the only legal document is between us and the bank. If the tax returns, we can fix them.

BM I want you to be able to reassure the wife, you will not rely on anything in those tax returns to thwart the interpretation of an order by His Lordship

KZ Yes that is not possible.

BM 875. Paragraph 65. 'emailed Karim with my view...' BM reading. She is right about that, she is right about the entirety of the paragraph

KZ Not right, Ambulanz I couldn't invest in because I was in the UK, my wife is American I offered her instead of me. I sent her the spreadsheet on May 17th. I had invested in Blackstone

083 BM Easier to look at, 1079. 15th November. Ambulanz, you say let me know what you think, her response at 1193, she says it looks very interesting. 1472 there are emails between you and Doug, 11th November 2016, 'Terribly sorry to report...cannot accept the documents you are based in the UK' 1387, May 2017, you say 6 months later, you include it on a spreadsheet you say this is being done by a total return swap, you did have an interest, didn't you?

KZ No it was linked to a spreadsheet on my google drive, we went through this in detail at the first appointment. Just about that investment is the \$25,000. I sent a link to Nadia in 2017, she said in 2022 I hadn't disclose. Mike was going to take \$25,000 in Ambulanz, against Blackstone special opportunity fund, it hasn't been disclosed, this is the difficulty in inputting between two individuals, seemed to be complex, after 6 months consideration we decided not to do it. Mike Deeg wrote to the Judge on March 13th explaining exactly what happened, July 13th 2020 and email I'm sure we can find later, he states the investments, it is public, he doubled his money, I did not participate I couldn't.

BM Lifestyle, during your marriage you had a high lifestyle.

KZ Yes it was obscene

BM You have an ability to generate money in a way Nadia doesn't

KZ No I am a white 50-year-old male, I am not employable. Nadia is seeked after

BM Is it really your evidence, that Nadia can get a full-time job and be entirely self-sufficient through employment

KZ Women peers of mine in an industry have reinvented themselves, Miss Marsh...

BM She is not Nadia, do you think she can get a full-time job be self-sufficient through income. I am going to say she needs more than 50% of assets to meet her income needs, is that a fair submission?

KZ No

BM Why not

KZ Nadia is...

BM One of the things you seek an adjustment in relation to, your loss on crypto by not selling when it was higher, what is the adjustment?

KZ It is what his lordship things

BM What do you think this should be, Nadia had no input on the sale of this, you sold it. She didn't want you to sell it.

KZ She didn't say anything, it tried to get engagement. [BM conversing with NZ]

BM The circumstances with in which you sold them, that was without any notice to Nadia

KZ It was without any notice

BM You seek adjustment for wear and tear on the property, Children have been in that property for 9 years, its reasonable wear and tear

KZ I realised the landlord was being very hard he was asking for money on an iPad which I never used, I am going to push back with him on that

BM Can I push back on that, that's in your conduct statement is that something you will be pursuing.

KZ Nadia was continuing to borrow money from her father, it is a gift probably, she is now saying it was a loan, it is illegal on US tax returns

BM 19950, you say she did not look after the property, you are now telling his lordship that the landlords seeking of some of these monies has been unfair, are you still seeking £19950?

KZ 12 of the 19 I am seeking, 7 were unfair

BM The bulk of the costs in this litigation are costs for which you are responsible, you did not make ongoing updating disclosure

KZ I do not believe so

BM You say that Imerman was unnecessary, 25000 should be paid by Nadia, look at page 87 please. Transcript from August 2021 hearing. Halfway down talking about Imerman. 'we conduct our own assessment' the treatment of the Imerman documents was the treatment that your barrister were contending for from August 2021. To ask Nadia to pay for this is unfair, no?

KZ I don't understand

AC This is a legal argument, KZ shouldn't be expected to understand

BM You were saying through your barrister that the Imerman documents should be reviewed by HFC, I am going to say that it is unfair for you to say Nadia is responsible for that, is that fair?

KZ I don't understand

[BM checking with NZ any other questions]

BM You said that you would sell at the high point, she didn't engage, her response that other correspondence was talking about splitting everything in specie, she was adopting your alternative approach, that is fair, no?

KZ No, we are talking about crypto and Coinbase, I have messages from 2016 when she was saying she wanted to sell. This was the all-time high, optimal time, I reached out to sell these two assets

BM You only know it's the all-time high 3 years later

KZ There was also a big divorce going on, seemed I was the only one responsible.

BM Imerman documents, extent of the inquiry by HFC was greater than she suggesting was carried out, she was suggesting only 1 of the 4 folders should be examined as she knew the contents and they insisted on doing all four.

KZ HFC did what they felt they had to, she said the other day they should never look at the Ubuntu computer.

BM I haven't been able to cover everything I wanted to cover, AC referenced that in regards to raising things in submissions.

15:05

Re-examination

AC 1599 – You explained just now that you had split, you made this proposal in 2021 when the discussions of the loan were being aired, thereafter that once the loans had been produced 'your client can withdraw funds of up to...on a pound for pound basis' what was her response to that offer?

KZ Too little too late

AC Would you have a look at 2283 please

[FS looking through the documentation, paused taking note]

AC Zahmoul.ka look at 3651, on this page we have identified, it says deleted, do you know what that might be?

KZ It means that it is account that will be closed down on 24th

AC 18 October 2014-15 January 2014, on 3652, the wallet first activated, we see the 19th October, we can see some activity, little activity in 15, 17 and the last activity on this account is 31st July 2017, that is the entirety of that account is it?

KZ correct.

AC 2816. 1338, Paragraph 5 you have already explained to the judge you spoke to your solicitors in April, you mentioned that your solicitors have not always understood the difference between Coinbase and crypto, explain how that has been an issue?

KZ Letter of July 5th, willing to exchange information only for the crypto assets, Nadia got confused with Coinbase and crypto. My solicitor may have in writing that letter, we were going to explain the information on Topanga.

BM You can say anything if you say I told my solicitor XY and Z and they just got confused

AC I accept that. 1380. We have looked at this before, want to get the chronology in order, you are talking about the Coinbase. Who is in green.

KZ Me. I don't know what is behind it is not me

AC Underneath, it is not right that we are not getting any information

KZ I describe this as not being a traditional investment.

AC 1377, July 2020, writing to Rachel at Buena Vista. It is Steve Yang.

KZ Half a million dollars of Coinbase

AC Did you get any material response?

KZ No, it was very hush hush it was the shares of the CEO of Coinbase

AC 1384 please. Again, we are on 13 July 2020, again you are in conversation with Mike Deeg, 'where she asked him if the investment was fake' what does this relate to?

KZ Coinbase

AC That was July 2020, now look at 898 please. Mrs. Zahmoul is trying to allege you were trying to hide that information, you did a search of your computers

KZ She wanted to know every single conversation I had had, all the emails I received from Topanga Canyon and myself since February 2020 to April 14th 2020.

AC How did we find these documents, the conversations with Mike Deeg?

KZ I provided them to show...I wanted to show communications between me and Topanga, there was some that I missed I was in Morocco

AC And everything you had was that sent to Mrs. Zahmoul's lawyers?

KZ I believe so.

AC A document given to your wife in May 2017, sometime later it came back to you.

KZ In March 7th 2022 said there was another asset that you haven't disclosed. Was put together in 2017, Nadia wanted to know all the investments, span of that company

AC When the document was sent to her in 2017 was there any discussion about it?

KZ Don't think so

AC 1389. I put these documents to Mrs. Zahmoul suggesting she knew about Coinbase, listing the assets, we can see investments, and Coinbase is listed, what did you understand Mrs. Zahmoul would do with this document?

KZ From time to time she wanted to know what I had, this was produced to show her. I had onshore and offshore, there was another potentially big exchange, this is a similar exchange to Coinbase, there was no way this could be misunderstood to be venture capital.

AC Look at 1392, we have looked a few times over the last few days, her emoji to you was good luck to the world, what did you think it was?

KZ She was congratulating me

AC It has been suggested to you generally that your intention was to hide or deceive Mrs. Zahmoul about the 5 million windfalls in Coinbase, we have seen your letter detailing the change in investment, why was that sent?

KZ To inform her about the change, should have been sent earlier.

AC Supplemental bundle at page 13. This is an email from you to Mr Burgess in November 2022, what was the purpose of you proposing to meet?

KZ I wanted to meet to suggest that I was willing to answer any question

AC Page 26, email in French to Nadia and her father. Page 29 for the English translation, third paragraph on page 29, did you get a response?

KZ no

AC 2929 in the main bundle

KZ CV of Monica McGregor, remind his lordship of who she is

AC I still have 20 minutes

BM Some of these documents I haven't even taken him to, it needs to be re-examination

➤ **J I would like to finish today, but it does need to be by 10 to**

AC Been put to you that you wanted to put pressure on to get a deal done while Mrs. Zahmoul was without representation. 2858. Can you explain where the information came from to complete the schedule?

KZ This was a painstaking exercise, take each one of the entries on the spreadsheet.

AC Has NZ had all the core documents?

KZ Yes

AC In relation to spending on your daughters

KZ Beginning of proceedings

AC In relation to Gemini we have an affidavit from your sister in the bundle. BMs case is that you were either parking assets with your sister or trying to hide the assets, that remains the suggestions, can you explain to his lordship the position?

KZ My sister got married in..

➤ **J A lot of this I am aware of and I can look at the documents myself**

AC These documents, a number of tables accompanying the letter from Portuguese advisors, 21 documents, BM asked for tables of income that were referred to in the letter

BM Bank accounts

KZ Some of them are here, 2020 and 2021 bank accounts, it was always there in my form E, same account number as Mr. Luis had put into tax authorities

AC 3593 please. NZ has raised a number of questions about Portuguese tax returns, this is a document provided by the Portuguese advisors

KZ This is a document Valeria helped me to put together, response to Nadia's accusation of figure 2 of the conduct pleadings

AC This is a line-by-line response, prepared by you

KZ By me yes

AC Detailed response to the lines in Mrs. Zahmoul's table

AC Are you hiding money?

KZ No

AC Are you hiding any money or crypto?

KZ No

➤ **J I don't have any further questions. I propose AC to allow leading and junior counsel to put together submissions and hear them on Wednesday**

15:40